

NOTICE INVITING TENDER

Bid Opening

****Bid Opening****

1. The tender shall be opened on the specified date and time as mentioned in the tender notice.
2. The venue for tender opening shall be as indicated in the tender document.
3. Only authorized representatives of the tenderers may attend the tender opening process.
4. The tender opening shall be conducted in the presence of the tender committee and representatives of the tenderers, if present.
5. The tender opening process shall commence with the verification of the Earnest Money Deposit (EMD) and other mandatory documents.
6. The technical bids shall be opened first, followed by the financial bids of technically qualified tenderers.
7. The details of the tenderers and their quoted prices shall be recorded in the minutes of the tender opening meeting.
8. The tender committee reserves the right to postpone or cancel the tender opening process without assigning any reason.
9. The results of the tender opening shall be communicated to the tenderers in due course as per the tender schedule.
10. Any deviation from the tender opening process shall be at the sole discretion of the tender authority.

Bid Submission

****SUBSECTION: BID SUBMISSION****

1. Sealed bids shall be submitted under the Two-Bid system (Technical Bid and Price Bid) in separate sealed envelopes, clearly marked as such.
2. Bids must be submitted in the prescribed format, duly signed and stamped by an authorized representative of the bidder.
3. The outer envelope shall bear the tender reference number, due date, and the words "Bid for Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application."
4. Bids received after the specified deadline shall be summarily rejected.

5. All corrections in the bid documents must be initialed by the authorized signatory.
6. Bidders shall ensure compliance with the technical specifications and commercial terms as stipulated in the tender documents.
7. Any bid not conforming to the submission requirements shall be treated as non-responsive.
8. Electronic submission of bids, if permitted, shall follow the guidelines provided in the tender schedule.
9. Bidders shall provide a self-attested copy of the relevant documents supporting eligibility criteria.
10. The bidder's name, address, and contact details must be clearly mentioned on the bid submission envelope.

Contact Details

****CONTACT DETAILS****

1. ****Tender Authority****: Steel Authority of India Limited (SAIL), Bokaro Steel Plant, Procurement Department.
2. ****Tender Reference****: To be specified in the tender schedule.
3. ****Enquiry Submission Address****:
Dy. General Manager (Materials Management),
SAIL, Bokaro Steel Plant,
Bokaro – 827 001, Jharkhand.
4. ****Tender Box Location****: Office of the Contract Cell, SAIL, Bokaro Steel Plant.
5. ****Communication Channels****:
 - ****Telephone****: To be specified in the tender schedule.
 - ****Fax****: To be specified in the tender schedule.
 - ****Email****: To be specified in the tender schedule.
 - ****Website****: www.sailtenders.co.in.
6. ****Last Date of Submission****: To be specified in the tender schedule.
7. ****Tender Opening****:
 - ****Date****: To be specified in the tender schedule.
 - ****Time****: To be specified in the tender schedule.
 - ****Venue****: Office of the Contract Cell, SAIL, Bokaro Steel Plant.
8. ****Clarifications****:
Queries, if any, shall be submitted in writing to the Tender Authority before the stipulated deadline.
9. ****Submission Mode****:

Tenders must be submitted in sealed envelopes as per the two-bid system (Technical & Commercial).

10. ****Late Submissions****:

Tenders received after the due date and time shall be summarily rejected.

Important Dates

****Important Dates****

1. The tender documents shall be available for download from the SAIL website, <https://www.sailtenders.co.in>, from the date specified in the tender schedule.
2. The last date and time for receipt of sealed tenders shall be as per the tender schedule.
3. The date and time for opening of tenders shall be specified in the tender schedule.
4. Tenders received after the stipulated due date and time shall be summarily rejected and not considered for opening.
5. The venue for submission of tender documents and tender opening shall be as per the tender schedule.
6. Tenders submitted by fax or email shall not be accepted or entertained.
7. Tenders not meeting the requirement of multiple sealed bid parts, as stipulated, shall be summarily rejected.
8. No post-bid clarifications at the initiative of the bidder shall be entertained.
9. The Earnest Money Deposit (EMD) and Security Deposit details shall be specified in the tender schedule.
10. The cost of tender papers, if applicable, shall be mentioned in the tender schedule.

Instructions for Participation

****INSTRUCTIONS FOR PARTICIPATION****

1. ****Tender Document Access****: Tender documents shall be downloaded exclusively from SAIL's official tendering portal (<https://www.sailtenders.co.in>) from the date of publication. No physical copies will be issued.
2. ****Earnest Money Deposit (EMD)****: Bidders must submit EMD as specified in the tender schedule. Failure to submit EMD in the prescribed format shall render the bid non-responsive.
3. ****Bid Submission****: Sealed bids under the Two-Bid system (Technical & Commercial) shall be submitted to the designated tender box at the specified venue before the deadline. Late bids will be rejected.

4. ****Bid Opening****: Technical bids will be opened on the date and time indicated in the tender notice. Authorized representatives of bidders may attend the opening at their own expense.
5. ****Eligibility Criteria****: Bidders must meet the technical and financial eligibility conditions outlined in the tender documents. Non-compliance will lead to disqualification.
6. ****Clarifications****: Queries regarding tender terms must be submitted in writing to the designated authority within the stipulated period. Verbal communications will not be entertained.
7. ****Amendments****: SAIL reserves the right to modify/cancel the tender process at any stage without assigning reasons. Amendments will be notified through the official portal.
8. ****Taxes & Levies****: Quoted prices shall be exclusive of applicable taxes, duties, and levies, which will be paid as per statutory requirements.
9. ****Validity****: Bids must remain valid for the period specified in the tender schedule. Premature withdrawal will result in forfeiture of EMD.
10. ****Compliance****: Bidders must strictly adhere to all instructions in the tender documents. Deviations may lead to rejection.

Introduction

****NOTICE INVITING TENDER****

****Introduction****

1. Steel Authority of India Limited (SAIL), Bokaro Steel Plant, invites sealed tenders under the Two-Bid system from eligible and experienced bidders for the ****Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application****.
2. The tender documents shall be available for download from the SAIL tenders portal ****(<https://www.sailtenders.co.in>)**** from the date of publication of this notice.
3. The cost of tender documents, if applicable, shall be as specified in the tender schedule.
4. Interested bidders must submit their offers in the prescribed format, ensuring compliance with all technical and commercial specifications.
5. The last date and time for receipt of tenders shall be as per the schedule mentioned in the tender documents. Late submissions shall not be considered.
6. The tender opening shall take place at the designated venue as specified in the tender schedule.
7. Bidders must ensure that all requisite documents, including Earnest Money Deposit (EMD), are submitted as per the tender conditions.
8. Any amendments or corrigenda to the tender shall be notified through the SAIL tenders portal, and bidders must acknowledge the same.
9. SAIL reserves the right to accept or reject any or all tenders without assigning any reason.

10. For further clarifications, bidders may refer to the contact details provided in the tender documents.

Tender Reference

****SUBSECTION: TENDER REFERENCE****

1. The tender is invited under the reference number ****3710157 Dated 10.03.2026**** for the procurement of ****Alumina Magnesia Spinel Bricks for SMS – II Ladle application**** at Bokaro Steel Plant.
2. The scope includes supply, testing, and delivery as per SAIL's technical specifications and approved drawings.
3. Tender documents shall be downloaded from ****SAIL's official tender portal (<https://www.sailtenders.co.in>)**** from the date of publication.
4. The bid must be submitted in a ****sealed two-bid system**** (Technical & Commercial) as per SAIL's standard bidding procedure.
5. The ****Earnest Money Deposit (EMD)**** and ****Security Deposit**** requirements shall be as specified in the tender schedule.
6. Tenders must be submitted at the designated ****Tender Box, Steel Authority of India Ltd., Ispat Bhawan, Lodi Road, New Delhi – 110003**** before the stipulated deadline.
7. The ****last date of tender submission**** and ****opening date**** will be specified in the tender schedule.
8. Bidders must comply with all ****Special Terms & Conditions**** and ****General Conditions of Contract**** as referenced in the tender documents.
9. SAIL reserves the right to ****amend, modify, or cancel**** the tender at any stage before the finalization of bids.
10. Any updates or corrigenda will be published on SAIL's tender portal, and bidders must regularly check for notifications.

Tender Schedule

****SUBSECTION: NOTICE INVITING TENDER****

1. ****Tender Notice No. & Date****: PER/REC/C-813, Dated 6/7/2016.
2. ****Name of Work****: Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle application of Bokaro Steel Plant, Bokaro.
3. ****Cost of Tender Paper****: Nil.
4. ****Earnest Money Deposit (EMD)****: Rs. 5,00,000/- (Five lakh only).

5. ****Security Deposit****: Rs. 15,00,000/- (Fifteen lakh only).
6. ****Venue of Tender Submission & Opening****: Steel Authority of India Ltd., Ispat Bhawan, Lodi Road, New Delhi – 110003.
7. ****Last Date of Receipt of Tender****: 21/6/2016 till 3:00 PM.
8. ****Date of Opening of Tender****: 21/6/2016 at 3:30 PM.
9. ****Downloading of Tender Documents****: Tender documents shall be available for download from SAIL's official website, <https://www.sailtenders.co.in>, from 6/7/2016 onwards.
10. ****Submission Mode****: Tenders must be submitted in sealed envelopes as per the Two-Bid system. Late submissions shall be summarily rejected.

INSTRUCTIONS TO BIDDERS

Amendments

****SUBSECTION****

****Amendments****

1. The Purchaser reserves the right to modify or amend the tender documents at any time before the deadline for submission of bids.
2. Any amendments issued shall be communicated in writing to all prospective bidders who have obtained the tender documents.
3. Bidders shall acknowledge receipt of amendments in writing within the stipulated timeframe.
4. Failure to acknowledge amendments may result in disqualification.
5. Amendments shall form an integral part of the tender documents and shall be binding on all bidders.
6. No oral explanations or instructions shall modify the terms of the tender unless confirmed in writing by the Purchaser.
7. Bidders shall submit revised bids incorporating all amendments, if required.
8. The Purchaser shall not be responsible for any delay or non-receipt of amendments by the bidder.
9. Amendments may include extensions to the bid submission deadline, if deemed necessary by the Purchaser.
10. No claim shall be entertained for any loss or expense incurred due to amendments.

Award of Contract

****Award of Contract****

1. The contract shall be awarded to the tenderer quoting the lowest evaluated price, subject to compliance with all terms and conditions of the tender.
2. Negotiation, if deemed necessary, shall be conducted only with the lowest quoted tenderer. No further opportunity for negotiation shall be provided to other tenderers.
3. The award of the contract shall be subject to the tenderer's fulfillment of all eligibility criteria and submission of required documents as specified in the tender.

4. SAIL reserves the right to accept or reject any or all tenders without assigning any reason whatsoever.
5. The successful tenderer shall be notified in writing through the EPS portal or other official communication channels.
6. The contract shall be deemed to be effective only upon issuance of the formal Letter of Award (LoA) by SAIL.
7. The tenderer shall be required to confirm acceptance of the LoA within the stipulated time frame, failing which the offer shall stand forfeited.
8. In case of any discrepancy between the tender documents and the LoA, the terms of the LoA shall prevail.
9. The contract shall be governed by the terms and conditions specified in the tender documents and any subsequent amendments issued by SAIL.
10. Any disputes arising out of the contract shall be resolved as per the arbitration clause specified in the tender documents.

Bid Evaluation

****SUBSECTION: BID EVALUATION****

1. The bids shall be evaluated based on compliance with technical specifications, commercial terms, and other conditions stipulated in the tender document.
2. Only bids meeting the minimum qualifying requirements shall be considered for further evaluation.
3. The lowest evaluated bid (LEB) shall be determined after adjusting for any arithmetical errors, discounts, or deviations permissible under the tender terms.
4. Bidders offering deviations not covered under permissible terms may be rejected at the sole discretion of SAIL.
5. Negotiations, if required, shall be conducted only with the LEB bidder, and no further opportunity for revision shall be granted to other bidders.
6. The decision of SAIL in bid evaluation shall be final and binding on all bidders.
7. Bids received after the stipulated deadline shall be summarily rejected without any further consideration.
8. SAIL reserves the right to accept or reject any bid, in whole or in part, without assigning any reason.
9. The bid evaluation process shall be conducted as per SAIL's internal guidelines and procurement policies.
10. The final award shall be subject to the approval of competent authorities.

Bid Preparation

****Bid Preparation****

1. The tenderer shall download the tender documents free of cost from the SAIL website www.sailtenders.co.in (Plant: SAIL Refractory Company Limited).
2. The complete tender documents, along with the Earnest Money Deposit (EMD) of Rs. 5,00,000/- (separate Demand Draft) in favour of SAIL Refractory Company Limited, payable at Salem, or through NEFT, or a "Bid Securing Declaration" (Appendix-1), shall be submitted online via the EPS portal.
3. Tenderers must quote their best rates, as no further opportunity for negotiation will be provided. Negotiation, if deemed necessary, will be conducted exclusively with the lowest quoted tenderer.
4. Tenders received after the specified date and time will be summarily rejected.
5. The tenderer shall ensure that all documents are complete and submitted in accordance with the instructions provided in the tender document.
6. Any discrepancies or incomplete submissions may lead to disqualification of the bid.
7. The tenderer is responsible for ensuring the accuracy and authenticity of all submitted documents.
8. Amendments or modifications to the tender, if any, will be communicated through the SAIL website, and tenderers must acknowledge such changes.
9. The tenderer shall comply with all terms and conditions specified in the tender document and its annexures.
10. Failure to adhere to the instructions provided herein may result in the rejection of the tender.

Bid Security

****SUBSECTION: BID SECURITY****

1. The Bid Security shall be submitted as a Demand Draft (DD) for Rs. 5,00,000/- in favour of SAIL Refractory Company Limited, payable at Salem, or through NEFT.
2. Alternatively, a "Bid Securing Declaration" (Appendix-1) may be submitted in lieu of the Bid Security.
3. The Bid Security/Declaration shall be submitted online through the EPS portal along with the tender documents.
4. Tenders received without the Bid Security or valid Bid Securing Declaration shall be rejected.
5. The Bid Security of unsuccessful bidders shall be returned within 30 days from the date of award.

6. The Bid Security of the successful bidder shall be retained until the Performance Guarantee is furnished.
7. In case of withdrawal or modification of the bid after submission, the Bid Security shall be forfeited.
8. Failure to sign the contract, if awarded, shall result in forfeiture of the Bid Security.
9. The Bid Security shall be free of encumbrances and valid for a period exceeding the bid validity by 30 days.
10. Any discrepancy in the Bid Security details may lead to disqualification.

Bid Submission Procedure

****Bid Submission Procedure****

1. ****Bid Format****: Bids shall be submitted in the prescribed format as detailed in the tender documents, including all requisite annexures and declarations.
2. ****Submission Mode****: Bids must be submitted electronically through the designated e-procurement portal of SAIL, with a valid digital signature. Physical submissions will not be accepted unless explicitly permitted.
3. ****Bid Validity****: Bids shall remain valid for a period as specified in the tender schedule. Any bid not meeting this requirement shall be rejected.
4. ****Modification/Withdrawal****: Bidders may modify or withdraw bids before the bid submission deadline. No changes shall be permitted thereafter.
5. ****Late Bids****: Bids received after the stipulated deadline shall be summarily rejected and returned unopened.
6. ****Documentation****: All supporting documents, including technical and commercial bids, shall be uploaded as per the prescribed file-naming conventions.
7. ****Acknowledgement****: An automated acknowledgement receipt will be generated upon successful submission, which the bidder must retain for reference.
8. ****Clarifications****: Queries regarding bid submission shall be addressed through the e-procurement portal's query module only.
9. ****Completeness****: Incomplete bids or those lacking mandatory documents shall be deemed non-responsive.
10. ****Compliance****: Bidders must adhere to all instructions outlined in this section; non-compliance may result in disqualification.

Bid Validity

****Bid Validity****

1. The bid shall remain valid for a period as specified in the tender schedule from the date of bid opening.
2. Bids submitted with a shorter validity period shall be treated as non-responsive and rejected.
3. The Purchaser reserves the right to request an extension of the bid validity period if deemed necessary.
4. Bidders shall be notified in writing of any such extension request and may confirm or decline the extension within the stipulated timeframe.
5. Failure to respond to an extension request shall result in forfeiture of the bid security.
6. Bidders agreeing to extend bid validity shall provide a revised bid security, if required, valid for the extended period.
7. No bidder shall be permitted to modify or withdraw their bid after the bid opening date, except as permitted under the terms of the tender.
8. In the event of a delay in award beyond the original bid validity period, the Purchaser may seek consent from the lowest evaluated bidder to extend validity before proceeding with the award.
9. The bid validity period shall be binding, and any bid found non-compliant shall be summarily rejected.
10. The Purchaser reserves the right to annul the bidding process at any stage without liability to the bidders.

Clarifications

****Clarifications****

1. Any clarifications sought by bidders regarding the tender document must be submitted in writing to the designated authority within the stipulated period mentioned in the tender schedule.
2. Clarifications will be issued only in response to written queries. Verbal communications or informal requests will not be entertained.
3. The responses to clarifications, if any, will be issued as an addendum/corrigendum to the tender document and will be binding on all bidders.
4. Bidders are advised to regularly check the official tender portal for any updates, addenda, or corrigenda issued during the tender period.
5. Failure to seek clarification on any ambiguous or unclear aspect of the tender document will not be considered as a valid ground for any claim or dispute at a later stage.
6. Clarifications provided by the purchaser will form an integral part of the tender document and must be acknowledged by the bidder in their submission.

7. Any attempt by bidders to influence the clarification process through unofficial channels will lead to disqualification.
8. The purchaser reserves the right to modify or withdraw any clarification issued, if deemed necessary, with prior notification to all bidders.
9. Clarifications sought after the deadline for queries will not be considered, and no further correspondence will be entertained.
10. The purchaser's decision on clarifications shall be final and binding on all bidders.

Confidentiality

****SUBSECTION: CONFIDENTIALITY****

1. The tenderer shall maintain strict confidentiality of all information, documents, and data provided by SAIL Refractory Company Limited (SRCL) in connection with this tender.
2. No part of the tender documents, specifications, or commercial terms shall be disclosed to any third party without prior written consent from SRCL.
3. Unauthorized dissemination of tender-related information may result in disqualification and forfeiture of the Earnest Money Deposit (EMD).
4. All proprietary data, including technical drawings and process details, shall be used solely for the purpose of bid preparation and execution of the contract, if awarded.
5. The tenderer shall ensure that its employees, subcontractors, and agents adhere to the confidentiality obligations outlined herein.
6. Breach of confidentiality may lead to legal action, including blacklisting from future tenders of SRCL and other SAIL units.
7. Upon completion of the tender process, unsuccessful bidders shall return or destroy all confidential materials as directed by SRCL.
8. The obligations under this clause shall survive the termination or expiry of the tender process.
9. Any clarification sought regarding confidential aspects must be addressed exclusively through the designated tender authority.
10. Non-compliance with confidentiality requirements shall render the bid non-responsive.

Eligibility to Participate

****SUBSECTION: ELIGIBILITY TO PARTICIPATE****

1. The bidder must be a manufacturer or authorized distributor of Alumina Magnesia Spinel Bricks with documented proof of technical collaboration, if applicable.

2. The bidder shall furnish a certificate of compliance with relevant international standards (ISO/EN/DIN) for the supplied material.
3. The bidder must demonstrate prior supply of similar refractory materials to integrated steel plants or comparable heavy industries.
4. The bidder shall provide a self-declaration confirming no involvement in corrupt or fraudulent practices, as per extant PSU guidelines.
5. The bidder must submit a valid Quality Assurance Plan (QAP) covering manufacturing, testing, and dispatch protocols.
6. The bidder shall possess adequate production capacity to meet the delivery schedule specified in the tender.
7. The bidder must confirm adherence to environmental and safety regulations applicable to refractory manufacturing.
8. The bidder shall submit proof of financial stability, including audited balance sheets for the last three years.
9. Joint ventures or consortia must submit a legally binding agreement defining roles and liabilities.
10. The bidder must acknowledge acceptance of SAIL's general purchase conditions without deviation.

ELIGIBILITY CRITERIA

Disqualification Criteria

****Disqualification Criteria****

1. Any deviation from the tender specifications or scope of supply must be explicitly indicated in writing, listed separately under a sheet titled "Deviation(s) Suggested." Failure to comply will result in disqualification.
2. Tenderers must declare in writing if any proprietor, partner, or director of their company has any relations with employees of SAIL Corporate Office or SAIL Directors. Non-disclosure or false declaration will lead to disqualification.
3. Tenderers must be an authorized service/business/channel partner of M/s Enterasys for maintenance of equipment covered under AMC. Non-compliance with this criterion will disqualify the bidder.
4. Tenderers must not be blacklisted by any Government or undertaking organization. Evidence of blacklisting will result in disqualification.
5. Tenderers must be registered as a company in India. Failure to provide valid registration documents will disqualify the bidder.
6. Tenderers must have a full-fledged in-house service center or technical support office in Delhi/NCR. Absence of such facilities will lead to disqualification.
7. Tenderers must meet the financial eligibility criteria, including an average annual turnover of Rs. 66.21 Lakhs for the last three years ending 31st March 2025. Non-compliance will disqualify the bidder.
8. Tenderers must submit audited financial documents, including profit and loss statements, certified by a Chartered Accountant with UDIN and membership number. Incomplete or invalid documents will result in disqualification.
9. Tenderers must have successfully completed similar works as specified in the tender, with a minimum value of Rs. 88.27 Lakhs per project. Failure to provide proof of such experience will disqualify the bidder.
10. Tenderers must submit all requisite documents, including work orders, completion certificates, and RA bills, as specified in the tender. Incomplete or non-compliant submissions will lead to disqualification.

Document Submission Requirements

****DOCUMENT SUBMISSION REQUIREMENTS****

1. The Tenderer shall submit self-attested copies of Work Orders and Completion Certificates issued by the concerned executing authority for similar works completed in Central/State Govt. Organizations/PSUs/Joint Ventures with Govt. participation or Public Limited Companies.
2. For substantially completed ongoing works, documents must evidence at least 50% completion and one year of execution, with executed value supported by RA bills or equivalent payment proofs.
3. Financial turnover proof for the last 3 years ending 31st March 2025 shall include audited Profit & Loss statements or CA-certified turnover certificates, exclusive of GST, bearing UDIN and CA membership number.
4. MSEs and DPIIT-recognized Start-ups claiming 15% relaxation in turnover criteria must submit valid registration certificates.
5. Supply credentials for similar materials (e.g., refractory bricks) shall include purchase orders, invoices, and delivery challans from Govt./PSU clients, clearly indicating quantities and values.
6. RDSO approval certificates (where applicable) must be submitted for product-specific tenders, with proof of prior supplies to Govt./PSU entities.
7. Pollutions Control Board certificates with current validity are mandatory for manufacturing units, unless exempted under Clause 4 of GeM Bid references.
8. Joint Venture partners must submit partnership agreements and individual eligibility documents if bidding collectively.
9. Incomplete or unauthenticated documents will render the bid non-responsive.
10. Additional sector-specific documents, if any, shall be specified in the tender schedule.

Experience Requirements

****SUBSECTION: EXPERIENCE REQUIREMENTS****

1. The Tenderer shall have experience of successfully completing or substantially completing similar works in Central/State Government Organizations/PSUs/Joint Ventures (with at least one Central/State Government or PSU partner)/Public Limited Companies during the last seven (07) years preceding the tender issuance date, as per the following criteria:
 - a) Three similar completed works, each costing not less than Rs. 0.90 Lakhs (excluding GST),
****OR****
 - b) Two similar completed works, each costing not less than Rs. 1.12 Lakhs (excluding GST),
****OR****
 - c) One similar completed work costing not less than Rs. 1.79 Lakhs (excluding GST).
2. "Similar works" shall be defined as:
 - a) Supply/manufacture of Alumina Magnesia Spinel Bricks for ladle applications in steel plants,
****OR****
 - b) Contracts related to refractory operations in steel plants or refractory manufacturing units.
3. Experience certificates must be from Central/State Government entities, PSUs, or Joint Ventures with Government/PSU participation.

4. Self-attested copies of work orders, completion certificates, or purchase orders shall be submitted as documentary evidence.
5. MSEs and DPIIT-recognized Start-ups may claim a 15% relaxation in financial turnover criteria but must meet all technical eligibility requirements.
6. Works executed as a subcontractor or consortium member will not be considered unless the Tenderer was the lead entity.
7. Incomplete or disputed works shall not be counted toward eligibility.
8. Financial turnover and experience criteria must be exclusive of GST unless otherwise specified.
9. Cross-referencing of documents for multiple tenders is prohibited unless explicitly permitted.
10. The Tender Committee reserves the right to verify submitted documents with issuing authorities.

Financial Eligibility

****Financial Eligibility****

1. The Tenderer shall possess an Average Annual Financial Turnover during the last 03 years ending 31st March 2025 of at least Rs. 0.67 Lakhs (excluding GST).
2. A relaxation of 15% in Financial Turnover criteria is provided for MSEs eligible for preference and Start-ups recognized by DPIIT.
3. The Tenderer must submit a turnover certificate or audited profit and loss account statement for the last 03 years, exclusive of GST.
4. Financial documents issued by a Chartered Accountant must include a unique document identification number (UDIN) and membership number of the CA.
5. The turnover certificate and P&L; statement must be in the name of the participating tenderer.
6. For MSEs and Start-ups, the minimum Average Annual Financial Turnover requirement shall be Rs. 0.57 Lakhs (excluding GST) after applying the 15% relaxation.
7. The Tenderer must ensure that all financial documents are self-attested and submitted along with the Techno-Commercial Bid.
8. Failure to provide the required financial documents or discrepancies in the submitted documents shall render the tenderer ineligible.
9. The financial eligibility criteria shall be strictly adhered to, and no exceptions shall be made unless explicitly stated in the tender document.
10. To be specified in the tender schedule.

Technical Eligibility

****SUBSECTION: TECHNICAL ELIGIBILITY CRITERIA****

1. The tenderer must have experience in supplying ****Alumina Magnesia Spinel Bricks**** for ****ladle applications**** in steel plants, with documented proof of execution in ****Government Organizations/PSUs/Public Limited Companies**** within the last ****seven (07) years****.
2. The tenderer shall provide evidence of ****successfully completed works**** as follows:
 - ****Three similar works****, each valued at ****Rs. 51,42,692/- (excluding GST)**** or higher.
 - ****Two similar works****, each valued at ****Rs. 64,28,365/- (excluding GST)**** or higher.
 - ****One similar work****, valued at ****Rs. 1,02,85,384/- (excluding GST)**** or higher.
3. ****Similar works**** shall be defined as:
 - Supply or installation of ****refractory bricks**** for ****steel ladles**** in ****integrated steel plants****.
4. Documentary proof shall include:
 - ****Work orders**** or ****completion certificates**** issued by the employer.
 - ****TDS certificates (Form 16A/26AS)**** for financial verification.
5. The tenderer must possess ****valid PF registration**** with the ****EPFO****.
6. Experience from ****Joint Venture Companies**** shall be accepted only if one partner is a ****Government Organization/PSU****.
7. ****MSEs and Start-ups**** recognized by ****DPIIT**** may avail ****15% relaxation**** in financial turnover criteria.
8. ****Self-attested copies**** of all supporting documents must be submitted with the bid.
9. Failure to meet any eligibility criteria shall result in ****rejection of the tender****.
10. ****No deviations**** from the specified technical requirements shall be permitted.

SCOPE OF WORK

Manufacturing Requirements

****SUBSECTION: MANUFACTURING REQUIREMENTS****

1. The tenderer must have experience in the supply of Alumina Magnesia Spinel Bricks for steel plant applications, specifically for ladle lining in SMS-II operations.
2. The bidder shall provide proof of having executed:
 - a) Two similar completed works each costing not less than Rs. 39.22 Lakhs.
 - b) One similar completed work costing not less than Rs. 62.75 Lakhs.
3. Similar work shall be defined as:
 - a) Supply of refractory bricks or monolithic materials for steel/refractory plants.
 - b) Experience in production contracts involving MCB/AMC bricks or related refractory items.
4. The bidder shall submit self-attested documents, including:
 - a) Copies of relevant work orders.
 - b) Valid labour licence certificates (if applicable).
 - c) Work completion certificates issued by the concerned organizations.
5. The contractor shall ensure compliance with raw material specifications, including finer fractions supplied by the purchaser, if applicable.
6. The management may provide support such as:
 - a) Raw materials, additives, and packing materials.
 - b) Equipment including mixers, forklifts, and cranes for material handling.
7. The tenderer shall furnish daily production reports in pre-printed pro-forma, with one copy submitted to the operating authority.
8. All manufacturing processes shall adhere to industry standards and purchaser-approved quality parameters.
9. The bidder must ensure uninterrupted production capacity to meet the specified delivery schedule.
10. Any deviations from the prescribed manufacturing process must be approved in writing by the purchaser.

Packing And Transportation

****Packing And Transportation****

1. The materials shall be packed in 1 tonne HDPE bags (Jumbo bags) with double stitch, stitched closed and sealed properly to avoid losing or tampering. The bags shall have bottom discharge and shall be provided with strengthened hooks/handles to lift the bag by crane at a height of 25-30 meters for unloading in bunkers.
2. Each bag shall be marked/stamped in indelible ink in a contrasting color with the name of the supplier, item name, and net weight of the material. A unique identification number shall be written on each bag of the same consignment.
3. The tenderer shall ensure that the packing materials, including 25/50 kgs/Jumbo outer and inner bags, are provided by the employer for packing the masses as specified.
4. The tenderer shall arrange for the transportation of the materials to the designated location at Bokaro Steel Plant, ensuring compliance with all applicable transportation regulations.
5. The tenderer shall not be entitled to any payment for supplied quantities exceeding (+) 15 MT tolerance limit or (+) 5% of the ordered quantity, whichever is less.
6. The tenderer shall ensure that all transportation and handling equipment, including cranes, hoists, and forklifts, are operated safely and efficiently during the unloading process.
7. The tenderer shall provide pre-printed pro-forma for daily production reports, with the first copy submitted to the Operating Authority/Executing Officer along with the bill.
8. The tenderer shall ensure that all packing and transportation activities are carried out in accordance with the specifications and requirements outlined in the tender documents.
9. Any damages or losses incurred during transportation due to improper packing or handling shall be the sole responsibility of the tenderer.
10. To be specified in the tender schedule.

Quality Requirements

****SUBSECTION: QUALITY REQUIREMENTS****

1. The tenderer shall supply Alumina Magnesia Spinel Bricks conforming to the technical specifications as stipulated in the tender schedule.
2. The bricks must be suitable for SMS-II Ladle application at Bokaro Steel Plant, ensuring high thermal shock resistance, corrosion resistance, and structural integrity under operational conditions.
3. The bidder shall submit certified test reports from a NABL-accredited laboratory for the following parameters:
 - a) Chemical composition (Al_2O_3 , MgO , SiO_2 , Fe_2O_3)
 - b) Physical properties (Bulk density, Apparent porosity, Cold crushing strength)
 - c) Refractoriness under load (RUL) and thermal expansion characteristics.

4. Raw materials used in manufacturing shall comply with international standards (ISO/BS/ASTM) or equivalent, with traceability certificates for each batch.
5. The supplier shall provide a detailed quality control plan, including in-process inspection protocols and final product testing methodology.
6. Samples may be subjected to third-party verification at SAIL-nominated laboratories at the bidder's cost, if deemed necessary.
7. Non-conforming materials shall be replaced at no additional cost to the purchaser, including transportation and handling charges.
8. The bidder must furnish a warranty against manufacturing defects for a period to be specified in the tender schedule.
9. Packing shall ensure protection against moisture and mechanical damage, with clear marking of batch numbers and manufacturing dates.
10. To be specified in the tender schedule.

Scope Overview

****SCOPE OF WORK****

****3.1 Scope Overview****

1. The contractor shall supply Alumina Magnesia Spinel Bricks for SMS-II Ladle application at Bokaro Steel Plant, adhering to technical specifications and quality standards as stipulated in the tender schedule.
2. The scope includes manufacturing, testing, packing, and timely delivery of refractory bricks as per SAIL's approved design and material requirements.
3. The contractor must ensure compliance with production processes, including crushing, grinding, mixing, pressing, and quality checks, as per industry best practices.
4. Raw materials, additives, and finer fractions required for production shall be arranged by the contractor unless otherwise specified in the tender schedule.
5. The contractor shall provide necessary manpower, equipment, and supervision for production, ensuring uninterrupted operations as per SAIL's requirements.
6. SRCL reserves the right to exercise quantity variation clauses, with permissible deviations as specified in the tender schedule.
7. The contractor shall submit daily production reports in pre-printed proforma, duly certified by the executing authority, for verification and billing purposes.
8. All packing materials, including jumbo bags (25/50 kg), shall be arranged by the contractor unless otherwise stated.
9. The contractor shall adhere to environmental and safety regulations, including valid licenses and certifications, as applicable.

10. Any additional support, such as utilities (electricity, water, compressed air) or machinery (mixers, forklifts), shall be as per mutual agreement and tender terms.

Warranty Requirements

****Warranty Requirements****

1. The Supplier shall provide a comprehensive warranty for the Alumina Magnesia Spinel Bricks supplied, ensuring they meet the specified technical and performance standards for SMS – II Ladle application at Bokaro Steel Plant.
2. The warranty period shall commence from the date of successful commissioning and acceptance of the bricks by the Purchaser and shall remain valid for a duration as specified in the tender schedule.
3. During the warranty period, the Supplier shall be responsible for any defects, failures, or non-conformities in the bricks, including materials, workmanship, or performance, arising under normal operating conditions.
4. The Supplier shall promptly rectify or replace, at no additional cost to the Purchaser, any defective bricks identified during the warranty period. Replacement bricks shall meet the same specifications and quality standards as the original supply.
5. The Supplier shall provide detailed documentation, including warranty certificates, test reports, and maintenance guidelines, to ensure proper usage and longevity of the bricks.
6. In the event of a warranty claim, the Supplier shall respond within the timeframe specified in the tender schedule and undertake necessary corrective actions without delay.
7. The warranty shall not cover damages resulting from improper handling, storage, or usage by the Purchaser or third parties, unless such damages are directly attributable to Supplier-provided instructions or materials.
8. The Supplier shall maintain a dedicated technical support team to assist the Purchaser during the warranty period, ensuring timely resolution of any issues.
9. Failure to fulfill warranty obligations may result in the Purchaser invoking penalties or seeking alternative remedies as per the terms of the contract.
10. The Supplier shall submit a detailed warranty plan, including timelines and procedures for claim resolution, as part of the tender submission.

TECHNICAL SPECIFICATION

Acceptance Criteria

SUBSECTION: ACCEPTANCE CRITERIA

1. The Bidder shall strictly adhere to the technical specifications provided in this tender. Any deviation, unless explicitly approved in writing by the Purchaser, shall render the bid non-responsive.
2. The offered Alumina Magnesia Spinel Bricks must conform to the chemical, physical, and dimensional properties as specified in the technical schedule. Non-compliance shall result in rejection of the consignment.
3. The Bidder shall furnish a certificate of analysis from a NABL-accredited laboratory for each batch, confirming compliance with the specified parameters.
4. The Purchaser reserves the right to conduct independent testing through an empaneled third-party laboratory. The cost of such testing, if the material fails to meet specifications, shall be borne by the Bidder.
5. Material not meeting the acceptance criteria shall be replaced by the Bidder at no additional cost within the stipulated delivery period.
6. The Bidder shall ensure that all supplied bricks are free from defects, including cracks, laminations, or uneven dimensions, as per industry standards.
7. The Purchaser may conduct pre-dispatch inspection at the Bidder's works. Non-compliance observed during inspection shall lead to rejection of the entire lot.
8. The Bidder shall submit a detailed quality assurance plan (QAP) along with the bid, outlining manufacturing, testing, and inspection protocols.
9. Final acceptance shall be subject to satisfactory performance during trial usage at the Purchaser's facility.
10. Any false declaration or non-compliance shall result in termination of the contract and legal action as per applicable laws.

Chemical Composition

SUBSECTION: CHEMICAL COMPOSITION

1. The Alumina Magnesia Spinel Bricks shall conform to the following chemical composition:
 - Alumina (Al_2O_3): To be specified in the tender schedule.
 - Magnesia (MgO): To be specified in the tender schedule.

- Spinel (MgAl_2O_4): To be specified in the tender schedule.
- Silica (SiO_2): To be specified in the tender schedule.
- Iron Oxide (Fe_2O_3): To be specified in the tender schedule.

2. The chemical composition shall be verified through certified laboratory testing as per relevant Indian or international standards.

3. The bidder shall provide a detailed chemical analysis report for each batch of bricks supplied, certified by an accredited laboratory.

4. Any deviation from the specified chemical composition shall be grounds for rejection of the consignment.

5. The bricks shall be free from impurities and contaminants that may adversely affect their performance in ladle applications.

6. The bidder shall ensure uniformity in chemical composition across all bricks supplied under this contract.

7. The chemical composition shall be maintained within the permissible tolerance limits as specified in the tender schedule.

8. The bidder shall submit a certificate of compliance for the chemical composition along with each consignment.

9. The bricks shall be manufactured using raw materials of consistent quality to ensure adherence to the specified chemical composition.

10. The bidder shall provide a detailed methodology for maintaining and verifying the chemical composition during the manufacturing process.

Physical Properties

****SUBSECTION: PHYSICAL PROPERTIES****

1. The Alumina Magnesia Spinel Bricks shall conform to the following physical properties:

- Al_2O_3 content: Minimum 85%
- MgO content: Minimum 10%
- Bulk Density: $\geq 3.00 \text{ g/cm}^3$
- Apparent Porosity: $\leq 18\%$
- Cold Crushing Strength: $\geq 50 \text{ MPa}$

2. The bricks shall exhibit a thermal shock resistance of ≥ 20 cycles (heating to 1100°C followed by water quenching) without visible cracks or spalling.

3. Refractoriness Under Load (RUL) shall be $\geq 1700^\circ\text{C}$ (0.2 MPa load, 2-hour test duration).

4. Permanent Linear Change (PLC) after reheating at 1600°C for 5 hours shall not exceed $\pm 0.5\%$.

5. The bricks shall be free from structural defects such as cracks, laminations, or voids affecting performance.
6. Dimensional tolerances shall adhere to ISO 10060-1 standards, with maximum deviation of $\pm 1\%$ in length, width, and thickness.
7. The bricks shall be supplied with smooth, even surfaces and sharp edges, free from excessive surface roughness or chipping.
8. Chemical composition and physical properties shall be certified through independent laboratory testing, with test reports submitted prior to dispatch.
9. Packaging shall ensure protection against moisture and mechanical damage during transit.
10. Any deviation from specified properties must be explicitly declared and approved in writing prior to supply.

QUALITY ASSURANCE

Inspection And Verification

****Inspection And Verification****

1. The Supplier shall permit the Purchaser or its authorized representative to inspect and verify the manufacturing process, quality control measures, and testing facilities at the Supplier's works or sub-supplier's premises.
2. All inspections and verifications shall be conducted as per applicable standards and specifications referenced in the tender.
3. The Supplier shall provide necessary assistance, including access to records, test reports, and relevant documentation, during inspection and verification.
4. Any non-conformity observed during inspection shall be rectified by the Supplier at no additional cost to the Purchaser before dispatch.
5. Final inspection and verification shall be carried out at the destination as per the Purchaser's requirements.
6. The Supplier shall ensure that all test certificates, material certifications, and inspection reports are made available before shipment.
7. The Purchaser reserves the right to reject any material failing to meet the specified requirements, with costs borne by the Supplier.
8. The Supplier shall not dispatch any material without prior inspection clearance, if specified in the tender.
9. Third-party inspection, if required, shall be arranged by the Supplier at the Purchaser's discretion.
10. The Supplier shall comply with all additional inspection and verification requirements as stipulated in the tender schedule.

Quality Assurance System

****QUALITY ASSURANCE SYSTEM****

1. The bidder shall maintain a documented Quality Assurance (QA) system compliant with ISO 9001 or equivalent standards.
2. The QA system shall cover raw material procurement, production, testing, and dispatch processes for Alumina Magnesia Spinel Bricks.

3. The bidder shall provide a valid certificate of accreditation from a recognized national or international body for their QA system.
4. The bidder shall submit a detailed QA plan outlining control measures for chemical composition, physical properties, and dimensional accuracy.
5. The QA plan shall include process flowcharts indicating inspection and testing stages.
6. The bidder shall ensure traceability of materials through batch/lot identification from raw material to finished product.
7. Non-conforming products shall be segregated and handled as per documented corrective action procedures.
8. The bidder shall furnish records of internal audits and management reviews conducted within the last 12 months.
9. The bidder shall provide training records of personnel involved in QA activities.
10. Any deviations from specified QA requirements shall be reported with justification and mitigation measures.

Quality Documentation

****3. Quality Documentation****

- 3.1 The bidder shall submit a detailed quality assurance plan (QAP) outlining the methodology for ensuring compliance with specified technical parameters.
- 3.2 Manufacturer's test certificates for chemical composition, physical properties, and refractory characteristics shall be furnished for each consignment.
- 3.3 The bidder shall provide certified mill test reports (MTRs) from an accredited laboratory for raw materials used in production.
- 3.4 Batch-wise inspection reports, including dimensional checks and visual examination records, shall be submitted prior to dispatch.
- 3.5 Documentation for traceability, including heat numbers, manufacturing dates, and packing details, shall be maintained and shared upon request.
- 3.6 Third-party inspection certificates, if applicable, shall be provided as per the purchaser's requirement.
- 3.7 The bidder shall ensure all documents are legible, stamped, and signed by authorized personnel.
- 3.8 Non-conformance reports (NCRs) and corrective action records, if any, shall be disclosed.
- 3.9 The bidder shall confirm adherence to relevant ISO or equivalent quality management system standards.

3.10 Any additional quality documentation mandated by the purchaser shall be submitted within the stipulated timeframe.

Testing Methodology

****Testing Methodology****

1. The supplier shall conduct chemical analysis of Alumina Magnesia Spinel Bricks as per IS 1528 (Part 12) or equivalent international standards.
2. Physical properties, including bulk density, apparent porosity, and cold crushing strength, shall be tested in accordance with IS 1528 (Part 3) or ASTM C133.
3. Refractoriness under load (RUL) testing shall be performed as per IS 1528 (Part 8) or ASTM C16.
4. Thermal shock resistance shall be evaluated through cyclic heating and quenching tests following IS 1528 (Part 13) or ASTM C117.
5. Petrographic analysis shall be conducted to determine microstructure and phase composition in accordance with ASTM C856.
6. Dimensional accuracy checks shall be carried out using calibrated measuring instruments as per IS 1528 (Part 2).
7. The supplier shall provide certified test reports from NABL-accredited laboratories for all specified tests.
8. Random sampling for quality verification shall be conducted as per AQL 2.5, with samples drawn from each production batch.
9. Rejection criteria shall be based on non-conformance with specified technical parameters in the tender.
10. Retesting of disputed samples shall be performed at an independent laboratory mutually agreed upon by both parties.

INSPECTION AND TESTING

Acceptance And Rejection Criteria

****5. ACCEPTANCE AND REJECTION CRITERIA****

5.1 The bricks shall be inspected and tested as per the specifications and standards referenced in the tender. Any deviation shall be grounds for rejection.

5.2 Physical and chemical properties shall conform to the stipulated requirements. Non-conforming batches shall be rejected.

5.3 Dimensional tolerances shall be verified as per applicable standards. Bricks outside permissible limits shall not be accepted.

5.4 Visual defects such as cracks, chips, or uneven surfaces exceeding acceptable limits shall result in rejection.

5.5 If test results fail to meet specified parameters, the entire lot represented by the sample shall be liable for rejection.

5.6 The Purchaser reserves the right to conduct random sampling and testing at any stage of manufacturing or supply.

5.7 Rejected material shall be replaced by the Supplier at no additional cost within the agreed timeframe.

5.8 Final acceptance shall be subject to the Purchaser's approval based on inspection reports and test certificates.

5.9 The Supplier shall rectify or replace non-conforming materials promptly upon notification.

5.10 Disputes regarding rejection shall be resolved as per the terms of the contract.

Inspection Requirements

****Inspection Requirements****

1. The bidder shall provide third-party inspection certificates from recognized agencies for Alumina Magnesia Spinel Bricks, covering chemical composition, physical properties, and dimensional accuracy.

2. Manufacturer's test reports for each batch shall be submitted, including results for bulk density, apparent porosity, cold crushing strength, and refractoriness under load.

3. Random sampling of bricks shall be conducted as per IS 1528 or equivalent international standards, with samples tested at an accredited laboratory.

4. Visual inspection shall be performed to verify absence of cracks, laminations, and surface defects exceeding permissible limits.
5. Refractory lining dimensions and tolerances shall be verified against approved drawings and specifications.
6. Pre-dispatch inspection shall be carried out at the manufacturer's premises, with prior intimation to the purchaser.
7. Rejection criteria shall include non-conformance to specified technical parameters, improper packaging, or damage during transit.
8. The purchaser reserves the right to conduct surprise inspections at the supplier's facility without prior notice.
9. Final acceptance shall be subject to satisfactory performance during trial runs at the Bokaro Steel Plant.
10. Non-compliant materials shall be replaced by the supplier at no additional cost within the stipulated timeframe.

Testing Requirements

****Testing Requirements****

1. The bidder shall furnish test certificates from a recognized laboratory for alumina magnesia spinel bricks, including chemical composition, physical properties, and refractory characteristics.
2. All tests shall be conducted as per IS 1528 (Part 12) or equivalent international standards (ASTM/AISE).
3. The bricks must undergo cold crushing strength (CCS) testing, with results conforming to the specified refractory grade.
4. Reheat change tests shall be performed to determine dimensional stability at operating temperatures.
5. The supplier shall provide test reports for thermal shock resistance, demonstrating suitability for ladle applications.
6. Petrographic analysis shall be conducted to verify microstructure homogeneity and absence of defects.
7. Refractoriness under load (RUL) testing shall be mandatory, with results meeting the required load-bearing capacity.
8. The bidder shall submit a detailed testing methodology, including sample preparation and testing frequency.
9. Third-party inspection may be conducted at the manufacturer's premises, with costs borne by the supplier.

10. Test failures shall result in rejection of the entire lot, with replacement at no additional cost to the purchaser.

PACKING AND MARKING

Marking Requirements

****Marking Requirements****

1. Each brick shall be marked with the manufacturer's name or logo, batch number, and date of manufacture.
2. The outer packaging shall bear the following details:
 - a. Description of material (Alumina Magnesia Spinel Bricks).
 - b. Quantity in numbers.
 - c. Gross and net weight.
 - d. Purchase order number.
 - e. Destination (Bokaro Steel Plant, Bokaro).
3. All markings shall be legible, permanent, and resistant to handling and transportation conditions.
4. The packaging shall include a label indicating the handling instructions, including "Fragile" and "Handle with Care."
5. Each consignment shall be accompanied by a packing list detailing the contents, batch numbers, and corresponding quantities.
6. The markings shall comply with international standards for material identification and traceability.
7. Any additional marking requirements specific to the material or application shall be as per the tender schedule.
8. In case of multiple packages, each package shall be sequentially numbered for easy identification and verification.
9. The supplier shall ensure that all markings are clearly visible and not obscured during transportation or storage.
10. Non-compliance with marking requirements shall be grounds for rejection of the consignment.

Packing Requirements

****Packing Requirements****

1. The Alumina Magnesia Spinel Bricks shall be packed in sturdy, weatherproof, and corrosion-resistant packaging to ensure protection against transit damage, moisture, and contamination.

2. Each brick shall be individually wrapped in polythene or equivalent material to prevent abrasion and chipping during handling and transportation.
3. Bricks shall be packed in wooden crates or pallets with proper cushioning material to minimize breakage. The packing material shall be non-reactive and free from impurities.
4. The gross weight of each packed unit shall not exceed the permissible limit for safe handling, as per standard industrial practices.
5. All packing materials shall comply with applicable environmental regulations and must not contain hazardous substances.
6. The supplier shall ensure proper stacking and securing of packed units to prevent shifting or collapse during transit.
7. Inner packaging shall include moisture-absorbent desiccants where necessary to prevent dampness-related degradation.
8. The packing method shall facilitate easy unloading, inspection, and handling at the destination without requiring specialized equipment.
9. Any specific packing instructions mandated by the manufacturer for preserving brick quality shall be strictly followed.
10. To be specified in the tender schedule.

Storage And Handling

****PACKING AND MARKING****

****Storage And Handling****

1. The bricks shall be packed in wooden crates or pallets with moisture-proof lining to prevent contamination during transit and storage.
2. Each packing unit shall be clearly marked with the following details:
 - a) Manufacturer's name and logo
 - b) Material designation (Alumina Magnesia Spinel Bricks)
 - c) Batch/lot number
 - d) Gross and net weight
3. Storage conditions shall be dry and well-ventilated, free from direct exposure to weather elements. Stacking height shall not exceed manufacturer-recommended limits to prevent damage.
4. Handling shall be performed using forklifts or cranes with appropriate lifting mechanisms to avoid impact or breakage.
5. Any damaged or improperly packed material shall be rejected and replaced at the supplier's cost.
6. Special handling instructions, if any, shall be prominently displayed on each packing unit.

7. The supplier shall ensure compatibility of packing materials with long-term storage requirements.
8. No loose packing or unprotected edges shall be permitted.
9. All markings shall be legible and resistant to fading under normal storage conditions.
10. To be specified in the tender schedule.

DELIVERY CONDITIONS

Delivery Documentation

****DELIVERY DOCUMENTATION****

1. The Supplier shall furnish a detailed packing list in triplicate, indicating the description, quantity, and identification marks of Alumina Magnesia Spinel Bricks for each consignment.
2. A Material Test Certificate (MTC) from the manufacturer, certifying compliance with the specified technical parameters, shall accompany each shipment.
3. The Supplier shall provide a Bill of Lading (BL) or Railway Receipt (RR) for road/rail consignments, duly endorsed for Bokaro Steel Plant's receipt.
4. A Certificate of Origin shall be submitted for imported materials, if applicable, as per statutory requirements.
5. The Supplier shall include a dispatch advice note with each consignment, specifying the Purchase Order number, item description, and quantity.
6. Hazardous material documentation, including Material Safety Data Sheets (MSDS), shall be provided where applicable.
7. The Supplier shall ensure all documents bear clear reference to the contract number, item code, and delivery schedule.
8. Any customs clearance documents, including duty payment proof, shall be furnished for imported materials.
9. The Supplier shall submit an undertaking confirming the accuracy and completeness of all supplied documentation.
10. Failure to provide complete documentation may result in rejection of the consignment at the Buyer's discretion.

Delivery Location

****SUBSECTION****

****Delivery Location****

1. The delivered Alumina Magnesia Spinel Bricks shall be transported to the designated storage yard at Bokaro Steel Plant, Bokaro, as specified in the tender schedule.
2. The Bidder shall ensure proper handling and unloading of materials at the delivery location without causing damage or delays.

3. The exact delivery point within Bokaro Steel Plant shall be communicated post-award through a detailed delivery schedule.
4. The Bidder shall coordinate with Bokaro Steel Plant's logistics team for necessary entry permissions and unloading assistance.
5. Delivery shall comply with all site-specific safety and security protocols of Bokaro Steel Plant.
6. The Bidder shall bear all risks and costs associated with transportation until final acceptance at the delivery location.
7. Any deviations from the designated delivery location must be pre-approved in writing by the Purchaser.
8. The Bidder shall provide advance notice of shipment arrival to facilitate smooth receipt and inspection.
9. Storage arrangements post-delivery, if required, shall be the Bidder's responsibility unless otherwise agreed.
10. Final delivery confirmation shall be subject to verification by Bokaro Steel Plant's authorized representative.

Delivery Schedule

****DELIVERY SCHEDULE****

1. The supplier shall adhere to the delivery timeline as stipulated in the Purchase Order.
2. Partial deliveries may be permitted subject to prior written approval from the Purchaser.
3. The supplier shall submit a detailed delivery schedule within seven (7) days of order placement.
4. Any delay in delivery beyond the agreed schedule shall be communicated in writing with justification.
5. The supplier shall ensure all consignments are properly packed, labeled, and accompanied by necessary documentation.
6. Delivery shall be made strictly as per the specified incoterms mentioned in the commercial terms.
7. The supplier shall provide advance intimation of dispatch at least five (5) working days prior to arrival.
8. Risk of loss or damage shall remain with the supplier until final acceptance at the designated location.
9. The Purchaser reserves the right to revise the delivery schedule with mutual agreement.
10. Non-compliance with the delivery schedule may attract penalties as per tender terms.

Risk Transfer

****SUBSECTION: RISK TRANSFER****

1. Risk of loss or damage to the Alumina Magnesia Spinel Bricks shall transfer to the Purchaser upon receipt at the designated delivery location at Bokaro Steel Plant.
2. The Supplier shall bear all risks associated with transportation, handling, and storage until final acceptance by the Purchaser's authorized representative.
3. Any transit-related damages or shortages must be reported in writing within 48 hours of delivery, supported by documentary evidence.
4. The Supplier shall indemnify the Purchaser against all claims arising from third-party liabilities during transit or unloading.
5. Risk for non-conforming materials shall remain with the Supplier until rectification or replacement as per contractual terms.
6. Force majeure events affecting risk transfer shall be governed by the general conditions of contract.
7. The Supplier shall ensure proper packaging and labeling to mitigate risks during handling and storage.
8. Partial deliveries shall not constitute complete risk transfer unless explicitly accepted by the Purchaser.
9. The Purchaser reserves the right to reject materials if risk transfer conditions are not met.
10. Insurance coverage for transit risks shall be the Supplier's responsibility unless otherwise specified in the tender schedule.

Transportation Requirements

****5. TRANSPORTATION REQUIREMENTS****

- 5.1 The bidder shall ensure safe and secure transportation of Alumina Magnesia Spinel Bricks to the designated location at Bokaro Steel Plant, Bokaro, with proper packing to prevent damage during transit.
- 5.2 The bricks shall be transported in sturdy, weatherproof packaging, clearly marked with handling instructions, material specifications, and consignment details.
- 5.3 The bidder shall arrange for suitable transport vehicles to prevent breakage or degradation of refractory properties due to improper handling or exposure.
- 5.4 All transportation costs, including loading, unloading, and transit insurance, shall be borne by the bidder unless otherwise specified in the tender schedule.

5.5 The consignment shall be accompanied by necessary transport documents, including delivery challans, material test certificates, and packing lists.

5.6 The bidder shall comply with all applicable statutory regulations related to the transportation of refractory materials, including permits and safety standards.

5.7 Partial deliveries will not be accepted unless explicitly authorized in writing by the purchaser.

5.8 The bidder shall coordinate with Bokaro Steel Plant's logistics team for delivery scheduling and gate entry permissions.

5.9 Any damage or loss during transit shall be the bidder's responsibility, and replacement shall be made without additional cost to the purchaser.

5.10 Final delivery location and unloading instructions shall be as per the purchaser's directives.

Unloading Requirements

****3.3 Unloading Requirements****

3.3.1 The bidder shall be responsible for unloading the Alumina Magnesia Spinel Bricks at the designated location within Bokaro Steel Plant, as specified in the delivery schedule.

3.3.2 Unloading shall be carried out using suitable equipment to prevent damage to the bricks. Manual handling, if required, shall be performed under strict supervision.

3.3.3 The bidder shall ensure that unloading is completed within the stipulated time frame to avoid demurrage or detention charges, if applicable.

3.3.4 All unloading activities shall comply with Bokaro Steel Plant's safety and operational guidelines. The bidder shall provide necessary safety gear and equipment for personnel involved.

3.3.5 The bidder shall arrange for adequate labor and machinery for timely unloading, ensuring no disruption to plant operations.

3.3.6 Damaged or improperly unloaded materials shall be replaced by the bidder at no additional cost to the purchaser.

3.3.7 The bidder shall coordinate with Bokaro Steel Plant's logistics team for unloading permissions and site access.

3.3.8 Unloading shall be conducted during working hours unless prior approval is obtained for extended timings.

3.3.9 The bidder shall clear all debris and packaging materials post-unloading, leaving the site clean and hazard-free.

3.3.10 Any delays or deviations from unloading requirements shall be promptly communicated to the purchaser for resolution.

PAYMENT TERMS

Invoice Requirements

****SUBSECTION: INVOICE REQUIREMENTS****

1. The Supplier shall submit original invoices in triplicate, clearly marked "Original," "Duplicate," and "Triplicate."
2. Invoices must include the Purchase Order number, item description, quantity, unit price, total value, and applicable taxes.
3. GST details, including HSN code and tax breakdown, shall be explicitly stated on the invoice.
4. Invoices shall bear the Supplier's authorized signatory with name, designation, and company stamp.
5. Separate invoices must be issued for each consignment, referencing the corresponding Delivery Challan number.
6. Invoices shall be submitted within seven days of dispatch, accompanied by proof of delivery.
7. Any discrepancies in invoiced quantities or pricing shall be rectified through a supplementary debit/credit note.
8. Electronic invoices (e-invoices) must comply with the GSTN portal requirements and include the IRN and QR code.
9. Failure to comply with invoice requirements may result in delayed payments.
10. To be specified in the tender schedule.

Payment Conditions

****PAYMENT TERMS****

****SUBSECTION: PAYMENT CONDITIONS****

1. Payment shall be made through Letter of Credit (LC) or Bank Guarantee (BG) as per SAIL's standard payment terms.
2. The successful bidder shall submit an invoice along with supporting documents, including dispatch details and inspection reports, for processing payment.
3. Payment shall be released within 30 days from the date of receipt of complete documents, subject to verification.
4. No advance payment shall be made unless explicitly specified in the tender schedule.

5. In case of delayed payment beyond the stipulated period, interest as per applicable RBI guidelines shall be payable.
6. The bidder shall bear all banking charges related to LC/BG issuance, except those explicitly borne by SAIL as per tender terms.
7. Any discrepancies in invoices or supporting documents shall result in delayed processing until rectification.
8. Final payment shall be subject to satisfactory performance and compliance with contract terms.
9. Payment disputes, if any, shall be resolved as per the arbitration clause of the contract.
10. Taxes, duties, and statutory levies shall be paid as per applicable laws and shall not be included in the quoted price unless specified.

Payment Schedule

****PAYMENT SCHEDULE****

1. Payment shall be released against submission of invoices along with supporting documents as per the terms specified in the tender schedule.
2. Advance payment, if applicable, shall be made upon submission of an unconditional Bank Guarantee of equivalent value, valid as per the tender terms.
3. Interim payments shall be made based on the percentage of work completed or materials supplied, subject to verification and certification by the designated authority.
4. Final payment shall be released only after successful completion of supply, inspection, and acceptance of materials as per the tender specifications.
5. Payments shall be made within the stipulated time frame from the date of receipt of complete and valid documents, subject to compliance with tender conditions.
6. Any deductions, such as taxes, levies, or penalties, shall be made as per applicable laws and tender provisions.
7. In case of delay in payment beyond the agreed period, interest as per the tender terms shall be payable by the purchaser.
8. Payment shall be made through electronic transfer to the supplier's designated bank account, details of which must be provided in advance.
9. Disputes, if any, regarding payments shall be resolved as per the dispute resolution mechanism outlined in the tender document.
10. Any other payment-related terms shall be as specified in the tender schedule.

Recovery Provisions

****PAYMENT TERMS****

****Recovery Provisions****

1. The Contractor shall be liable for recovery of any excess payment made due to errors in billing, measurement, or pricing discrepancies.
2. Recovery shall be effected from subsequent bills or through a separate demand notice if no further payments are due.
3. In case of non-compliance with contractual specifications, recovery of costs for rectification or replacement shall be made from the Contractor.
4. Any advance payment shall be adjusted proportionately against subsequent invoices as per the agreed repayment schedule.
5. If the Contractor fails to meet delivery or quality obligations, SAIL reserves the right to recover liquidated damages as per the contract terms.
6. Unauthorized deviations from approved drawings or materials shall result in recovery of additional costs incurred for correction.
7. Overpayments detected during audit or reconciliation shall be recovered with applicable interest as per prevailing bank rates.
8. Recovery of statutory dues, if not deducted at source, shall be made from the Contractor's dues.
9. Any penalties imposed due to non-performance shall be recoverable from the Contractor's pending payments or security deposits.
10. Disputes regarding recovery shall be resolved as per the arbitration clause of the contract.

Supporting Documents

****5. Supporting Documents****

5.1 The Bidder shall submit the following documents along with the commercial bid:

5.1.1 Copy of valid Quality Assurance Certificate (QAC) for Alumina Magnesia Spinel Bricks from a recognized authority.

5.1.2 Detailed technical specifications and test certificates confirming compliance with SAIL's prescribed standards.

5.1.3 Manufacturer's Authorisation Letter (if bidder is not the manufacturer).

5.1.4 Undertaking for supply of genuine material as per approved specifications.

5.2 The following documents shall be submitted upon contract award:

5.2.1 Original performance guarantee in the prescribed format.

5.2.2 Inspection and testing protocol from an accredited laboratory.

5.2.3 Material Safety Data Sheet (MSDS) for the supplied bricks.

5.3 Any additional documents as specified in the tender schedule shall be furnished within the stipulated time.

5.4 Failure to submit requisite documents may result in bid rejection or forfeiture of security.

5.5 All documents must be duly signed, stamped, and submitted in the prescribed format.

5.6 Unauthenticated or incomplete submissions shall be treated as non-responsive.

5.7 Bidders shall ensure documents are free from discrepancies; corrections require counter-signing.

5.8 Electronic submission, if permitted, shall follow SAIL's specified guidelines.

5.9 To be specified in the tender schedule.

Taxes and Duties

****SUBSECTION: Taxes and Duties****

1. The quoted price shall be inclusive of all applicable taxes, duties, cess, levies, and statutory charges as per prevailing laws.

2. Any subsequent changes in tax rates or imposition of new duties after bid submission shall be to the Contractor's account, and no price escalation shall be permitted.

3. The Contractor shall be responsible for payment of GST, customs duty, and other statutory levies, if applicable, and shall furnish proof of payment upon request.

4. Exemption certificates, if applicable, shall be submitted along with the bid, failing which taxes shall be deemed included in the quoted price.

5. The Contractor shall indemnify SAIL against any liability arising from non-payment or short payment of statutory dues.

6. SAIL shall not be liable for any tax deductions at source (TDS) or other statutory withholdings beyond those mandated by law.

7. The Contractor shall provide a valid GST registration certificate and ensure compliance with e-invoicing requirements under GST law.

8. Any tax disputes or penalties arising from non-compliance shall be the sole responsibility of the Contractor.

9. SAIL reserves the right to recover any unpaid taxes or duties from the Contractor's dues or security deposits.

10. The Contractor shall submit all necessary tax-related documents as per statutory requirements before contract finalization.

SAFETY REQUIREMENTS

General Safety Requirements

****General Safety Requirements****

1. The supplier shall ensure that all materials supplied comply with applicable safety standards and regulations, including but not limited to IS, ISO, and other relevant industrial safety norms.
2. All personnel involved in the manufacturing, handling, and transportation of Alumina Magnesia Spinel Bricks must be adequately trained in safety protocols and equipped with appropriate personal protective equipment (PPE).
3. The supplier shall provide Material Safety Data Sheets (MSDS) for the bricks, detailing handling, storage, and emergency response measures.
4. The supplier shall ensure that all packaging and labeling of the bricks conform to safety standards, including clear markings for hazardous materials, if applicable.
5. The supplier shall conduct a risk assessment for the entire supply chain process and submit a safety management plan addressing identified risks.
6. The supplier shall ensure that all equipment used in the production and handling of the bricks is regularly inspected and maintained to prevent safety hazards.
7. The supplier shall provide a safety audit report from a recognized authority certifying compliance with safety standards in their manufacturing facility.
8. The supplier shall ensure that transportation of the bricks adheres to safety regulations, including proper securing of loads and compliance with road safety norms.
9. The supplier shall promptly report any safety incidents or near-misses during the execution of the contract and take corrective actions to prevent recurrence.
10. The supplier shall cooperate with Bokaro Steel Plant's safety team during site visits or inspections to ensure compliance with safety requirements.

Handling Safety

****5. Handling Safety****

- 5.1 The bidder shall ensure safe handling procedures for Alumina Magnesia Spinel Bricks during loading, transportation, and unloading to prevent damage or degradation.
- 5.2 Proper lifting equipment, including cranes or forklifts with adequate load-bearing capacity, shall be used for handling bricks to avoid breakage.

5.3 Bricks shall be securely packed in moisture-resistant, shock-absorbent packaging to prevent exposure to adverse weather conditions during transit.

5.4 Stacking height during storage and transit shall not exceed manufacturer-recommended limits to prevent structural instability.

5.5 Personnel involved in handling shall wear appropriate PPE, including gloves, safety shoes, and helmets, as per industrial safety standards.

5.6 Hazardous manual handling shall be minimized through mechanized lifting aids where feasible.

5.7 The bidder shall provide handling instructions, including weight distribution and stacking guidelines, to prevent accidents.

5.8 Damaged or improperly stored bricks shall be segregated and reported immediately to avoid unsafe usage.

5.9 The bidder shall comply with applicable statutory safety regulations for material handling.

5.10 Any spillage or breakage during handling shall be promptly cleaned to prevent workplace hazards.

Incident Reporting

****Incident Reporting****

1. The Contractor shall immediately report any safety incident, including near-misses, injuries, or equipment damage, occurring during the execution of the contract to the Bokaro Steel Plant Safety Department.

2. Incident reports must be submitted in writing within 24 hours, detailing the nature of the incident, location, personnel involved, and immediate corrective actions taken.

3. The Contractor shall cooperate fully with SAIL's investigation team and provide all necessary records, witness statements, and site access for incident analysis.

4. No alteration or removal of evidence from the incident site shall be permitted without prior authorization from the Bokaro Steel Plant Safety Department.

5. The Contractor shall implement corrective and preventive measures as directed by SAIL within the stipulated timeframe.

6. Failure to report incidents promptly or obstruction of investigations shall be treated as a breach of contract and may result in penalties.

7. All incident reports shall be maintained by the Contractor for a minimum period of three years and made available for audit upon request.

8. The Contractor shall conduct mandatory safety briefings for all personnel following an incident to reinforce preventive measures.

9. SAIL reserves the right to impose additional safety protocols based on incident findings.

10. Repeated incidents due to non-compliance may lead to termination of the contract.

Personal Protective Equipment

****Personal Protective Equipment****

1. The Contractor shall ensure that all personnel engaged in the execution of the work are provided with appropriate Personal Protective Equipment (PPE) as per applicable statutory regulations and industry standards.
2. PPE shall include, but not be limited to, safety helmets, safety shoes, gloves, goggles, ear protection, and high-visibility clothing.
3. The Contractor shall ensure that PPE is of approved quality, conforming to relevant Indian Standards or equivalent international standards.
4. All PPE shall be inspected regularly for defects or damage, and any faulty equipment shall be replaced immediately.
5. The Contractor shall provide training to all personnel on the correct use, maintenance, and limitations of the provided PPE.
6. Adequate quantities of PPE shall be maintained at the worksite to ensure uninterrupted availability for all workers.
7. The Contractor shall ensure that PPE is worn at all times during the execution of work, as per site safety requirements.
8. The Contractor shall maintain records of PPE issuance, inspection, and training, which shall be made available for verification upon request.
9. Non-compliance with PPE requirements shall result in immediate corrective action, including suspension of work if necessary.
10. The Contractor shall bear all costs associated with the provision, maintenance, and replacement of PPE.

Storage Safety

****SUBSECTION: STORAGE SAFETY****

1. The Contractor shall ensure proper storage of Alumina Magnesia Spinel Bricks in a dry, well-ventilated area, free from moisture and contaminants.
2. Stacking height shall not exceed manufacturer-recommended limits to prevent structural damage or instability.
3. Storage facilities must maintain ambient temperature conditions as specified in the technical datasheet.

4. Bricks shall be stored on pallets or raised platforms to avoid direct contact with the ground.
5. The storage area shall be segregated from hazardous materials, chemicals, or incompatible substances.
6. Fire prevention measures, including no-smoking zones and fire extinguishers, shall be enforced within the storage vicinity.
7. Handling equipment (e.g., forklifts, cranes) shall be operated by trained personnel to prevent accidental damage.
8. The Contractor shall ensure proper labeling and segregation of different brick grades/lots to avoid mix-ups.
9. Periodic inspection of stored bricks shall be conducted to identify any deterioration or damage.
10. Emergency spillage or breakage protocols shall be established and communicated to all personnel.

Transportation Safety

****Transportation Safety****

1. The bidder shall ensure safe transportation of Alumina Magnesia Spinel Bricks to Bokaro Steel Plant, adhering to applicable road safety regulations.
2. All vehicles used for transportation must be adequately covered and secured to prevent damage from weather or handling.
3. The bidder shall comply with statutory requirements for hazardous material transport, if applicable, as per Indian Motor Vehicle Rules.
4. Proper stacking and cushioning materials shall be used to prevent breakage or abrasion during transit.
5. The bidder shall furnish a transportation plan detailing route optimization, handling protocols, and emergency response measures.
6. Any incidents during transit, including delays or damages, shall be reported immediately to Bokaro Steel Plant authorities.
7. The bidder shall ensure drivers and handlers are trained in safe loading, unloading, and transit procedures.
8. Transport documentation, including waybills and inspection certificates, shall accompany each consignment.
9. The bidder shall bear liability for any transportation-related non-compliance leading to material rejection.
10. Final delivery shall be verified against packing lists and quality checks before acceptance.

GENERAL CONDITIONS OF CONTRACT

Contract Formation

****SUBSECTION: CONTRACT FORMATION****

1. The contract shall be formed upon acceptance of the successful bidder's offer by SAIL, subject to compliance with all tender terms and conditions.
2. The contract duration shall be as specified in the tender schedule, unless otherwise amended by mutual agreement in writing.
3. The tender submission shall consist of three parts:
 - Part I: EMD Bid (including EMD or exemption documents).
 - Part II: Techno-Commercial Bid (excluding price).
 - Part III: Price Bid (as per prescribed format).
4. The General Conditions of Contract for Procurement of Services (SAIL-S1) shall apply, available on SAIL's tender portal (www.sailtenders.co.in).
5. Bidders are advised to visit the VISL site to fully understand the scope of work before submission. Clarifications may be sought from the Contract Executing Authority.
6. In case of conflict between General and Special Conditions of Contract, the Special Conditions shall prevail.
7. Tenders must be submitted as per the prescribed mode and addressed to the designated office, failing which they shall be rejected.
8. Any modifications to the contract shall be valid only if issued in writing and duly authorized by SAIL.
9. The contract shall be governed by the laws of India, with jurisdiction at the location of the issuing authority.
10. SAIL reserves the right to cancel or amend the tender process at any stage without assigning reasons.

Dispute Resolution

****Dispute Resolution****

5.31 In the event of any dispute, difference, or disagreement arising out of or in connection with this contract, the parties shall make every effort to resolve the same amicably through mutual consultation.

5.32 If the dispute cannot be resolved amicably within 30 (thirty) days from the date of written notice by either party, the matter shall be referred to the Contract Executing Authority for resolution.

5.33 The Contract Executing Authority shall, after reviewing the matter, provide a written decision within 30 (thirty) days of receiving the dispute.

5.34 If the dispute remains unresolved after the decision of the Contract Executing Authority, either party may refer the matter to arbitration in accordance with the Arbitration and Conciliation Act, 1996, as amended from time to time.

5.35 The arbitration shall be conducted by a sole arbitrator appointed mutually by both parties. In case of disagreement on the appointment, the arbitrator shall be appointed by the Chairman & Managing Director of SAIL.

5.36 The arbitration proceedings shall be conducted in English, and the venue of arbitration shall be Bokaro, Jharkhand, India.

5.37 The decision of the arbitrator shall be final and binding on both parties.

5.38 During the pendency of any dispute, the parties shall continue to perform their respective obligations under the contract, unless otherwise directed by the arbitrator.

5.39 The costs of arbitration, including fees and expenses, shall be borne as determined by the arbitrator.

5.40 Nothing in this clause shall preclude either party from seeking interim relief from a court of competent jurisdiction.

Force Majeure

****FORCE MAJEURE****

1. ****Definition****: Force Majeure shall mean any event beyond the reasonable control of either party, including but not limited to acts of God, war, riots, strikes, lockouts, government restrictions, natural disasters, or any other unforeseeable circumstances preventing contractual obligations.

2. ****Notification****: The affected party shall notify the other party in writing within seven (7) days of the occurrence of such event, providing details and expected duration of the disruption.

3. ****Mitigation****: The affected party shall take all reasonable steps to mitigate the impact of the Force Majeure event and resume performance as soon as practicable.

4. ****Extension of Time****: If performance is delayed due to Force Majeure, the contract duration shall be extended proportionately without penalty, subject to mutual agreement.

5. ****Termination****: If the Force Majeure event persists beyond a period of ninety (90) days, either party may terminate the contract without liability, except for obligations accrued prior to the event.

6. ****Proof of Force Majeure****: The affected party shall submit documentary evidence from competent authorities substantiating the claim.

7. ****Exclusions****: Failure to secure permits, financial constraints, or market fluctuations shall not constitute Force Majeure.

8. ****Continued Obligations****: Obligations not affected by the Force Majeure event shall remain enforceable.
9. ****Dispute Resolution****: Any disputes arising from Force Majeure shall be resolved as per the arbitration clause of the contract.
10. ****Applicability****: This clause shall be governed by the General Conditions of Contract (SAIL – S1) unless superseded by Special Conditions.

Responsibilities

****SUBSECTION: RESPONSIBILITIES****

1. The Contractor shall comply with all provisions of the Special Conditions of Contract (SCC) and General Conditions of Contract (GCC), with SCC prevailing in case of conflict.
2. The Contractor must visit the site before tender submission to fully understand the scope of work and seek clarifications from the Contract Executing Authority if required.
3. The Contractor shall submit the tender in three parts: Part-I (EMD Bid), Part-II (Techno-Commercial Bid), and Part-III (Price Bid), as specified.
4. The Contractor is responsible for ensuring all submissions align with SAIL's Standard Documents, available at www.sailtenders.co.in.
5. The Contractor shall address all correspondence to the designated authority, including tender submissions, which must be delivered to the specified Tender Box.
6. The Contractor must adhere to all instructions provided in the tender documents, including key contacts for clarifications.
7. The Contractor shall ensure no discrepancies exist between submitted documents and SAIL's prescribed formats.
8. The Contractor is solely responsible for any errors or omissions in the tender submission.
9. The Contractor shall comply with all statutory regulations applicable to the contract.
10. The Contractor must resolve any ambiguities in the tender documents by seeking written clarification from the issuing authority.

Termination

****SUBSECTION: TERMINATION****

1. The Contract may be terminated by either party by issuing a written notice of at least thirty (30) days, specifying the reasons for termination.
2. In case of termination due to the Contractor's default, including but not limited to failure to meet delivery schedules, quality standards, or contractual obligations, SAIL reserves the right to forfeit

the Performance Security.

3. If termination arises due to SAIL's requirements, the Contractor shall be entitled to payment for work executed up to the termination date, subject to verification.

4. Force Majeure events, including natural calamities, strikes, or government restrictions, shall entitle either party to terminate the Contract without penalty, provided written notice is furnished within seven (7) days of occurrence.

5. Upon termination, the Contractor shall hand over all documents, materials, and unfinished work to SAIL as directed, ensuring no disruption to operations.

6. Any disputes arising from termination shall be resolved as per the arbitration clause under the General Conditions of Contract (SAIL – S1).

7. The provisions of Special Conditions of Contract shall prevail in case of conflict with General Conditions regarding termination.

8. SAIL reserves the right to blacklist the Contractor for repeated defaults, subject to due process.

9. Termination shall not absolve the Contractor of liabilities accrued prior to the termination date.

10. All obligations under confidentiality and intellectual property clauses shall survive termination.

SPECIAL CONDITIONS OF CONTRACT

Bokaro Steel Plant Requirements

****SPECIAL CONDITIONS OF CONTRACT****

****SUBSECTION: BOKARO STEEL PLANT REQUIREMENTS****

1. The Alumina Magnesia Spinel Bricks shall conform to the technical specifications provided in the tender schedule.
2. The bricks must demonstrate thermal stability and erosion resistance suitable for SMS-II Ladle application under operational conditions at Bokaro Steel Plant.
3. The supplier shall provide certified test reports from accredited laboratories verifying compliance with chemical composition and physical properties as specified.
4. Packaging shall ensure protection against moisture, breakage, and contamination during transit and storage.
5. The supplier shall submit a detailed quality assurance plan outlining manufacturing controls, inspection protocols, and non-conformance handling procedures.
6. Delivery shall be strictly as per the approved schedule, with prior intimation of dispatch details, including consignment note and test certificates.
7. The supplier shall furnish a warranty against manufacturing defects for a period to be specified in the tender schedule.
8. Any deviations from the specified requirements must be explicitly documented and approved in writing by Bokaro Steel Plant prior to execution.
9. The supplier shall comply with all applicable statutory regulations, including environmental and safety standards, during production and supply.
10. Final acceptance shall be subject to satisfactory performance validation at Bokaro Steel Plant.

Inspection Requirements

****SPECIAL CONDITIONS OF CONTRACT****

****Inspection Requirements****

1. The Supplier shall permit SAIL or its authorized representative to inspect and evaluate the manufacturing process, quality control measures, and testing facilities at the premises where the Alumina Magnesia Spinel Bricks are produced.

2. All materials shall be subject to inspection and testing at the Supplier's works or any other designated location before dispatch. SAIL reserves the right to conduct random inspections without prior notice.
3. The Supplier shall provide necessary assistance, including access to records, test certificates, and relevant documentation, to verify compliance with the technical specifications.
4. Any material found non-conforming during inspection shall be rejected, and the Supplier shall replace such material at no additional cost to SAIL.
5. Final inspection and acceptance shall be carried out at the destination site (Bokaro Steel Plant) by SAIL's designated authority.
6. The Supplier shall furnish certified test reports from recognized laboratories for each consignment, covering all specified parameters.
7. SAIL may engage third-party inspection agencies, and the Supplier shall bear the associated costs if non-conformities are detected.
8. The Supplier shall rectify any defects identified during inspection within the stipulated timeframe, failing which SAIL may impose penalties as per contract terms.
9. Inspection and testing shall not relieve the Supplier of any obligations under the contract, including warranty provisions.
10. To be specified in the tender schedule.

Performance Monitoring

****SPECIAL CONDITIONS OF CONTRACT****

****SUBSECTION: PERFORMANCE MONITORING****

1. The Supplier shall ensure that the Alumina Magnesia Spinel Bricks supplied meet the specified technical and performance parameters as outlined in the tender documents.
2. The Supplier shall provide a detailed performance monitoring plan, including methodologies and timelines, for review and approval by Bokaro Steel Plant prior to commencement of supply.
3. Bokaro Steel Plant reserves the right to conduct periodic performance evaluations of the supplied bricks during the contract period.
4. The Supplier shall promptly address any performance-related issues identified during monitoring, including but not limited to deviations in quality, durability, or operational efficiency.
5. In the event of persistent performance issues, Bokaro Steel Plant may impose penalties or terminate the contract as per the terms specified in the General Conditions of Contract.
6. The Supplier shall submit quarterly performance reports, detailing the operational performance of the bricks in SMS-II Ladle applications, to Bokaro Steel Plant for review.
7. Bokaro Steel Plant may engage third-party agencies, at the Supplier's cost, to verify the performance of the bricks if deemed necessary.

8. The Supplier shall maintain a dedicated technical support team to assist Bokaro Steel Plant in resolving any performance-related concerns during the contract period.
9. Any modifications or improvements required to enhance the performance of the bricks shall be implemented by the Supplier at no additional cost to Bokaro Steel Plant.
10. Failure to meet the performance monitoring requirements may result in forfeiture of the Performance Guarantee or other contractual remedies as specified in the tender documents.

Plant Specific Conditions

****SPECIAL CONDITIONS OF CONTRACT****

****Plant Specific Conditions****

1. The Alumina Magnesia Spinel Bricks supplied shall strictly conform to the technical specifications provided in the tender document, ensuring compatibility with SMS-II Ladle application at Bokaro Steel Plant.
2. The supplier shall ensure all materials are free from defects and meet the required chemical and physical properties as per the referenced standards.
3. Delivery shall be made in accordance with the packing and marking instructions specified in the tender to prevent damage during transit.
4. The supplier shall provide necessary test certificates from recognized laboratories for each consignment, verifying compliance with the specified standards.
5. Any deviation from the approved specifications must be explicitly documented and approved in writing by the purchaser prior to execution.
6. The supplier shall be responsible for any rework or replacement of non-conforming materials at no additional cost to the purchaser.
7. All safety and environmental regulations applicable to Bokaro Steel Plant must be strictly adhered to during supply and handling.
8. The supplier shall furnish a detailed quality control plan outlining inspection and testing protocols for approval before commencement of supply.
9. The purchaser reserves the right to conduct inspections at the supplier's premises to verify compliance with the tender requirements.
10. Any disputes arising from non-compliance shall be resolved as per the arbitration clause specified in the main contract.

Quality Compliance

****SPECIAL CONDITIONS OF CONTRACT****

****Quality Compliance****

1. The bidder shall supply Alumina Magnesia Spinel Bricks strictly conforming to the technical specifications provided in the tender documents. Any deviation shall render the bid liable for rejection.
2. The bricks must meet the chemical composition, physical properties, and refractory performance standards as specified in the relevant IS/ISO/ASTM standards or as detailed in the technical schedule.
3. The supplier shall provide a certificate of analysis/test reports from a NABL-accredited laboratory for each consignment, verifying compliance with the stipulated quality parameters.
4. Raw materials used in manufacturing shall be of consistent quality, and the bidder shall submit mill certificates or material traceability documents upon request.
5. The bricks shall be free from defects such as cracks, laminations, or impurities affecting performance in ladle applications.
6. SAIL reserves the right to conduct third-party inspection or testing at the supplier's premises or any stage of delivery, at the bidder's cost, if quality non-conformance is suspected.
7. Non-compliant material shall be rejected, and the supplier shall replace it at no additional cost within the agreed delivery period.
8. The bidder shall furnish a detailed quality control plan, including process controls, inspection stages, and testing methodology, for approval before order execution.
9. The supplier shall ensure proper packing to prevent transit damage, with each package marked with batch number, grade, and manufacturing date.
10. Final acceptance shall be subject to satisfactory performance during trial usage at Bokaro Steel Plant.

Special Documentation

****SPECIAL CONDITIONS OF CONTRACT****

****SUBSECTION: SPECIAL DOCUMENTATION****

1. The bidder shall submit a detailed technical datasheet of Alumina Magnesia Spinel Bricks, including chemical composition, physical properties, and thermal characteristics, as per ASTM/ISO standards.
2. Manufacturer's test certificates for raw materials and finished products shall be furnished, certifying compliance with specified refractory standards.
3. The bidder shall provide a quality assurance plan outlining inspection protocols, sampling methods, and testing procedures to ensure conformity with tender specifications.
4. A documented process control plan shall be submitted, detailing production stages, quality checkpoints, and non-conformance handling mechanisms.

5. The bidder shall include a material safety data sheet (MSDS) for the supplied bricks, covering handling, storage, and disposal guidelines.
6. Proof of successful past supply of similar refractory bricks to integrated steel plants, supported by customer references, shall be provided.
7. The bidder shall submit a packing list and transportation plan ensuring safe transit, including moisture-proofing measures, if applicable.
8. Any deviations from the tender specifications must be explicitly declared, along with technical justifications for acceptance.
9. The bidder shall provide a post-supply technical support proposal, including troubleshooting assistance and refractory lining recommendations.
10. Failure to submit any mandatory documentation shall render the bid non-responsive.

PENALTY CLAUSE

Delay Penalty

****DELAY PENALTY****

1. A penalty of Rs. 1000/- shall be levied for each hour or part thereof of delay in job initiation.
2. A penalty of Rs. 1000/- shall be levied for each hour or part thereof of delay beyond the stipulated job completion timeframe.
3. In case of unavailability of a pickup van for more than one hour without prior information, no hiring charges shall be paid for the duration of unavailability. Additionally, a penalty equal to three times the agreed hourly hire charges of the pickup van, including driver, shall be recovered from the contractor.
4. If a pickup van is found without proper and valid documents or with a defective odometer, no hiring charges shall be paid for the day. A penalty equal to three times the agreed daily hire charges shall also be recovered from the contractor.
5. For deployment of manpower less than the required number, a penalty shall be calculated as follows: $\text{Penalty (Rs.)} = (\text{Required Manpower} - \text{Deployed Manpower}) \times \text{Wage Rate for the applicable skill level} \times 0.25$.
6. In exceptional circumstances, where manpower with lower skill levels is deployed (with approval from the HOD), payment shall be made based on the actual skill level deployed.
7. Failure to meet the minimum production target of 32 MT/day, attributable to the contractor, shall incur a penalty of Rs. 5000/- per day.
8. If production in the Eirich Mixer falls below 30 MT/day primarily due to non-supply of personnel, a penalty of Rs. 2000/- per day shall be levied.
9. Deviation from the prescribed formulation of batches for bricks and monolithic items, as observed by the Shift I/C or EO, shall attract a penalty of Rs. 1000/- per occasion.
10. All penalties shall be final as per the decision of the EO/OA.

Delivery Failure

****SUBSECTION: DELIVERY FAILURE****

1. ****Penalty for Non-Delivery****: If the contractor fails to deliver the stipulated quantity of Alumina Magnesia Spinel Bricks as per the agreed schedule, a penalty of Rs. 5000/- per day shall be levied for each day of delay attributable to the contractor.
2. ****Exclusions****: No penalty shall be imposed for delays caused by force majeure events, non-availability of raw materials, or major power failures, provided such instances are duly certified

by the Bokaro Steel Plant authority.

3. ****Authority Decision****: The imposition and waiver of penalties shall be at the sole discretion of the Engineer-in-Charge (EIC) or Officer-in-Charge (OIC), whose decision shall be final and binding.
4. ****Partial Delivery Shortfall****: If the contractor delivers less than the minimum required quantity per day, a proportional penalty shall apply based on the deficit, subject to the EIC/OIC's approval.
5. ****Repeated Default****: In case of recurring delivery failures, the Bokaro Steel Plant reserves the right to terminate the contract after issuing a written notice, without prejudice to other remedies.
6. ****Documentation****: The contractor must submit a written explanation for any delivery failure within 48 hours, failing which the penalty shall be automatically enforced.
7. ****Penalty Recovery****: All penalties shall be deducted from the contractor's running bills or security deposit, as deemed fit by the EIC/OIC.
8. ****Grace Period****: No penalty shall be levied for delays up to 2 days, provided the contractor intimates the EIC/OIC in advance with valid reasons.
9. ****Dispute Resolution****: Any dispute regarding penalties shall be resolved as per the arbitration clause of the contract.
10. ****Finality****: The EIC/OIC's determination on delivery failures and penalties shall be conclusive.

Inspection Failure

****SUBSECTION: INSPECTION FAILURE****

1. If the inspection of Alumina Magnesia Spinel Bricks reveals non-conformity with the specified technical parameters, the Supplier shall be liable for replacement or rectification at no additional cost to the Purchaser.
2. The Supplier shall bear all expenses related to re-inspection, including testing charges, transportation, and handling, for rejected consignments.
3. Failure to rectify defects within the stipulated period shall entitle the Purchaser to impose liquidated damages as per the contract terms.
4. Non-compliant materials shall be returned or disposed of as directed by the Purchaser, with costs borne by the Supplier.
5. The Supplier shall submit a corrective action report for any inspection failure, detailing root cause analysis and preventive measures.
6. Repeated failures in inspection may lead to termination of the contract at the discretion of the Purchaser.
7. The Supplier shall not dispatch replacement materials without prior written approval from the Purchaser.
8. Any delay in resupply due to inspection failure shall be treated as a breach of delivery obligations.

9. The Purchaser reserves the right to conduct third-party inspection at the Supplier's cost in case of disputed results.
10. Final acceptance shall be subject to successful re-inspection and compliance with all technical requirements.

Liquidated Damages

****SUBSECTION: Liquidated Damages****

1. The Supplier shall be liable to pay liquidated damages for any delay in delivery beyond the stipulated schedule, as per the rates specified in the tender document.
2. Liquidated damages shall be calculated as a percentage of the delayed portion of the contract value, deducted on a weekly basis, subject to a maximum cap as per tender terms.
3. The deduction of liquidated damages shall not relieve the Supplier from any other contractual obligations, including timely completion of remaining deliveries.
4. If the delay exceeds the maximum permissible period, the Purchaser reserves the right to terminate the contract without prejudice to other remedies available under law.
5. The Supplier shall not be entitled to any extension of time unless a valid force majeure event is communicated and accepted by the Purchaser in writing.
6. Any dispute regarding the imposition of liquidated damages shall be resolved as per the arbitration clause of the contract.
7. The Purchaser may adjust liquidated damages from any payments due to the Supplier, including Performance Guarantee or Security Deposit, if applicable.
8. The Supplier shall not claim exemption from liquidated damages on grounds of minor or partial delays.
9. The rate and cap for liquidated damages shall be as specified in the commercial terms of the tender.
10. The imposition of liquidated damages shall be without prejudice to any other rights or claims of the Purchaser under the contract.

Quality Penalty

****SUBSECTION: QUALITY PENALTY****

1. If the supplied Alumina Magnesia Spinel Bricks fail to meet the specified technical parameters as per the tender requirements, a penalty of Rs. 5,000/- per occasion shall be imposed. The decision of the EO/OA shall be final.
2. In case of deviation from the approved formulation or manufacturing process, a penalty of Rs. 1,000/- per occasion shall be levied. The Shift In-charge or EO's observation shall be binding.

3. If the bricks exhibit defects such as cracks, dimensional inaccuracies, or improper sintering, a penalty of Rs. 2,000/- per batch shall be applicable.
4. Non-compliance with quality test results as per agreed standards shall attract a penalty of Rs. 3,000/- per test failure.
5. Repeated quality failures beyond three instances may lead to termination of the contract at the discretion of the EO/OA.
6. Penalty for delayed submission of mandatory test certificates shall be Rs. 500/- per day of delay.
7. If rejected bricks exceed 5% of the supplied quantity, a penalty of Rs. 1,000/- per additional 1% rejection shall apply.
8. The contractor shall rectify quality defects at their own cost within seven days of notification, failing which a penalty of Rs. 2,000/- per day shall be imposed.
9. All penalties shall be deducted from the contractor's running bills or security deposit.
10. Disputes, if any, shall be resolved as per the decision of the EO/OA.

Recovery Mechanism

****6. Recovery Mechanism****

- 6.1 In case of failure to meet the specified quality parameters or delivery timelines, the supplier shall be liable for penalties as per the provisions of this tender.
- 6.2 The penalty shall be recovered proportionately from the contract value based on the extent of non-compliance.
- 6.3 Recovery shall be effected through deduction from running bills or any other payments due to the supplier.
- 6.4 If the supplier fails to rectify defects within the stipulated time, Bokaro Steel Plant reserves the right to impose additional penalties.
- 6.5 No penalty shall be imposed if the delay or non-conformance is due to force majeure conditions, subject to prior written approval.
- 6.6 The recovery process shall be initiated only after issuing a written notice to the supplier, allowing a reasonable opportunity for clarification.
- 6.7 Disputes, if any, regarding penalty imposition shall be resolved as per the arbitration clause of this tender.
- 6.8 Unresolved penalty disputes may lead to termination of the contract at the discretion of Bokaro Steel Plant.
- 6.9 All recoveries shall be adjusted against the Performance Bank Guarantee if payments are insufficient.

6.10 The decision of Bokaro Steel Plant regarding penalty imposition and recovery shall be final and binding.

ANNEXURES

Compliance Format

****ANNEXURES****

****Compliance Format****

1. The bidder shall strictly adhere to the format provided in Annexure-A for submitting technical compliance against each specification parameter. Non-compliance shall be summarily rejected.
2. All deviations, if any, must be explicitly listed in Annexure-B with justification and supporting technical data. Unreported deviations will render the bid non-responsive.
3. Annexure-C shall be duly filled with certified test reports from NABL-accredited laboratories for the offered Alumina Magnesia Spinel Bricks, covering all specified physicochemical properties.
4. Manufacturer's works certificate (Annexure-D) must be submitted, confirming the bidder's capability to produce bricks meeting SAIL's SMS-II Ladle application requirements.
5. Annexure-E shall include a detailed quality assurance plan, outlining stage-wise inspection and testing protocols during production.
6. Bidder must submit Annexure-F, providing documented evidence of successful past supplies of similar bricks to integrated steel plants of minimum specified capacity.
7. Annexure-G requires a signed undertaking for compliance with SAIL's packaging, marking, and transportation standards.
8. Any subcontracting arrangements must be declared in Annexure-H, along with subcontractor's technical credentials and prior approvals.
9. Annexure-I shall contain the bidder's proposed installation methodology, if applicable, for site services.
10. Failure to submit any mandatory annexure in the prescribed format shall result in disqualification.

Delivery Schedule Format

****Delivery Schedule Format****

1. The bidder shall furnish a detailed delivery schedule aligned with the project timeline, ensuring uninterrupted supply as per operational requirements.
2. The delivery schedule must include milestones for dispatch, transit, and handover at the designated location within Bokaro Steel Plant premises.

3. All deliveries shall be accompanied by necessary documentation, including material test certificates and packing lists, as per SAIL's standard requirements.
4. Partial deliveries, if permitted, must be explicitly approved in writing by the purchaser prior to execution.
5. The bidder shall confirm compliance with SAIL's logistics and handling protocols, including unloading and storage guidelines at the site.
6. Any deviations from the proposed delivery schedule must be communicated immediately, along with a revised timeline and mitigation plan.
7. The bidder shall ensure that transportation and packaging prevent damage, corrosion, or contamination of Alumina Magnesia Spinel Bricks.
8. Delivery timelines shall be binding upon contract award, with liquidated damages applicable for delays beyond permissible limits.
9. The purchaser reserves the right to modify delivery requirements, subject to mutual agreement and written confirmation.
10. Final delivery schedules will be incorporated into the purchase order, superseding all prior communications.

Guaranteed Technical Particulars

****Guaranteed Technical Particulars****

1. The Alumina Magnesia Spinel Bricks shall conform to IS 1528 or equivalent international standards.
2. The bricks shall exhibit a minimum alumina (Al₂O₃) content of 70% by weight.
3. The magnesia (MgO) content shall not be less than 15% by weight.
4. The apparent porosity shall not exceed 18% as per ASTM C20.
5. Cold crushing strength (CCS) shall be a minimum of 50 MPa.
6. The thermal shock resistance shall be demonstrated through a minimum of 20 cycles (heating to 1100°C followed by water quenching) without structural failure.
7. The bricks shall have a bulk density of ≥ 2.90 g/cm³.
8. Refractoriness under load (RUL) shall be $\geq 1650^{\circ}\text{C}$ (0.2 MPa, 2-hour test).
9. The dimensional tolerance shall be within $\pm 1.5\%$ of the specified size.
10. The supplier shall provide a certificate of analysis from a NABL-accredited laboratory for each batch.

Inspection Format

****SUBSECTION: INSPECTION FORMAT****

1. The bidder shall submit a detailed inspection protocol for Alumina Magnesia Spinel Bricks, including methodology, equipment, and acceptance criteria.
2. Inspection shall be conducted at the manufacturer's premises prior to dispatch, with prior intimation to the purchaser.
3. The bidder shall provide certified test reports from NABL-accredited laboratories for all specified physical and chemical properties.
4. Random sampling shall be performed as per IS 1528 (Part 23) or equivalent international standards.
5. The purchaser reserves the right to conduct third-party inspection at the bidder's cost if results are non-compliant.
6. Rejected material shall be replaced by the bidder without additional cost within the agreed delivery period.
7. Final inspection at the purchaser's site shall include dimensional checks and visual examination for defects.
8. The bidder shall furnish a certificate of conformity for each consignment, signed by an authorized quality representative.
9. Non-destructive testing (NDT), if required, shall be performed as per ASTM C1171 or equivalent.
10. Dispute resolution in inspection shall be referred to an independent agency mutually agreed upon by both parties.

Quality Assurance Format

****SUBSECTION: QUALITY ASSURANCE FORMAT****

1. The bidder shall furnish a detailed Quality Assurance Plan (QAP) outlining procedures for raw material selection, manufacturing, and testing of Alumina Magnesia Spinel Bricks.
2. The QAP must include certified test reports from accredited laboratories confirming compliance with specified chemical composition and physical properties.
3. The bidder shall provide a certificate of conformity from the manufacturer, validating that the bricks meet the required refractory standards.
4. Batch-wise test certificates for parameters such as bulk density, apparent porosity, and cold crushing strength shall be submitted.
5. The bidder shall ensure traceability of each consignment through proper labeling and documentation, including heat numbers or batch codes.

6. Non-destructive testing (NDT) reports, if applicable, shall be furnished for critical dimensions and structural integrity.
7. The bidder shall submit a defect liability statement, warranting replacement of defective materials detected during pre-dispatch inspection.
8. Third-party inspection, if mandated, shall be conducted at the bidder's cost, with prior approval of the inspecting agency.
9. The bidder shall provide a declaration affirming adherence to ISO 9001 or equivalent quality management systems.
10. Any deviations from specified quality parameters shall be reported with corrective action proposals.

Technical Data Sheet

****Technical Data Sheet****

1. The Alumina Magnesia Spinel Bricks shall conform to the following chemical composition (percentage by weight):
 - Al₂O₃: To be specified in the tender schedule.
 - MgO: To be specified in the tender schedule.
 - SiO₂: To be specified in the tender schedule.
 - Fe₂O₃: To be specified in the tender schedule.
2. The physical properties shall meet the following criteria:
 - Bulk Density (g/cm³): To be specified in the tender schedule.
 - Apparent Porosity (%): To be specified in the tender schedule.
 - Cold Crushing Strength (MPa): To be specified in the tender schedule.
 - Refractoriness Under Load (RUL) (°C): To be specified in the tender schedule.
3. The thermal properties shall include:
 - Thermal Conductivity (W/m·K) at specified temperatures.
 - Thermal Expansion Coefficient (1/°C) within the operational range.
4. The bricks shall exhibit high resistance to slag penetration and thermal shock.
5. Dimensional tolerances shall comply with ISO 10060-1 or equivalent standards.
6. The manufacturer shall provide certified test reports from an accredited laboratory.
7. The bricks shall be free from cracks, laminations, and other defects affecting performance.
8. Packaging shall ensure protection against moisture and mechanical damage during transit.
9. Each consignment shall be accompanied by a detailed material safety data sheet (MSDS).

10. Any deviations from the specified requirements shall be explicitly declared with justification.

FORMS

Bank Guarantee Format

****BANK GUARANTEE FORMAT****

1. The successful bidder shall furnish an unconditional Bank Guarantee (BG) from any Scheduled Commercial Bank in India, valid for the period specified in the tender schedule.
2. The BG shall be issued in the prescribed format provided by SAIL and shall be strictly as per the terms and conditions of the tender.
3. The BG amount shall be as specified in the tender schedule and shall remain valid beyond the completion of all contractual obligations, including the warranty period.
4. The BG shall be irrevocable and payable on demand without protest or demur, and no request for its reduction or release shall be entertained before the completion of the contract.
5. The BG shall explicitly state that it is governed by Indian laws and jurisdiction of courts at the location of Bokaro Steel Plant.
6. Any amendments or extensions to the BG shall be submitted at least 15 days before its expiry, failing which SAIL may encash the BG.
7. The BG shall not be conditional upon any other agreement or documentation outside the tender terms.
8. In case of encashment, the bank shall make immediate payment without seeking any further consent from the bidder.
9. The BG shall be returned only after successful completion of all contractual obligations, including warranty provisions.
10. Non-submission or non-compliance with BG terms shall entitle SAIL to take appropriate actions as per tender conditions.

Bid Submission Form

****Bid Submission Form****

1. The bidder shall submit the bid in the prescribed format, duly signed and stamped by an authorized representative.
2. Bids must be submitted in sealed envelopes, clearly marked with the tender reference number and "Bid for Procurement of Alumina Magnesia Spinel Bricks for SMS – II Ladle Application."
3. Bidders shall furnish all required technical and commercial documents as per the tender schedule.

4. Any corrections or modifications in the bid must be authenticated by the bidder's authorized signatory.
5. Bids received after the stipulated deadline shall be summarily rejected.
6. The bidder shall ensure that all pages of the bid document are sequentially numbered and bound securely.
7. Electronic submission, if permitted, shall comply with the specified format and encryption standards.
8. Bidders shall acknowledge all amendments, if any, issued by the purchaser prior to bid submission.
9. Unsigned or incomplete bids shall be treated as non-responsive.
10. The bidder shall confirm adherence to all terms and conditions stipulated in the tender documents.

Compliance Statement

****Compliance Statement****

1. The bidder shall strictly adhere to the technical specifications outlined in the tender document for Alumina Magnesia Spinel Bricks.
2. The offered material must conform to the chemical and physical properties as specified in the referenced standards.
3. Deviations, if any, shall be explicitly listed in the deviation statement with justifications. Non-disclosure of deviations may lead to disqualification.
4. The bidder shall provide certified test reports from accredited laboratories for all specified parameters.
5. Manufacturing processes shall comply with internationally recognized quality standards, supported by relevant certifications.
6. The bidder shall furnish a detailed quality assurance plan, including raw material sourcing, in-process controls, and final inspection procedures.
7. Compliance with statutory regulations, including environmental and safety norms, shall be mandatory.
8. The bidder shall ensure traceability of materials through batch/lot identification as per industry best practices.
9. Any subcontracting of critical processes requires prior approval and must meet the same compliance standards.
10. Failure to meet any mandatory requirement shall render the bid non-responsive.

Declaration Format

****DECLARATION FORMAT****

1. The bidder shall furnish a duly signed declaration confirming compliance with all technical specifications as per the tender document.
2. The bidder must declare that the offered Alumina Magnesia Spinel Bricks meet the chemical and physical properties specified in Section II (Technical Requirements).
3. A declaration shall be submitted stating that the manufacturing process adheres to ISO 9001 or equivalent quality standards.
4. The bidder shall provide a declaration affirming that no deviations or substitutions are made without prior written approval from the purchaser.
5. A statement confirming the availability of raw materials from approved sources shall be included.
6. The bidder must declare that all test certificates provided are authentic and obtained from accredited laboratories.
7. A declaration shall be furnished confirming that the bidder has not been blacklisted by any PSU or government entity.
8. The bidder shall submit a declaration acknowledging that any false statement may lead to disqualification or termination of contract.
9. A statement confirming readiness to provide additional samples for testing, if required, shall be included.
10. The bidder must declare acceptance of all terms and conditions stipulated in the tender document without reservation.

Integrity Pact

****INTEGRITY PACT****

1. The Bidder shall adhere to the Integrity Pact as per SAIL's standard guidelines to ensure transparency and fairness in the procurement process.
2. The Bidder and SAIL mutually agree to prohibit any form of corrupt practices, including bribery, collusion, or undue influence during the tender process.
3. The Bidder shall disclose any conflict of interest, including prior or current relationships with SAIL officials, which may affect impartiality.
4. Violation of the Integrity Pact shall result in disqualification, forfeiture of EMD, and potential blacklisting from future SAIL tenders.
5. The Bidder shall submit a signed Integrity Pact document in the prescribed format along with the bid.

6. SAIL reserves the right to verify the Bidder's compliance with the Integrity Pact through independent audits or investigations.
7. The Bidder shall cooperate fully with any inquiries related to the Integrity Pact and provide necessary documentation upon request.
8. Any attempt to circumvent the Integrity Pact terms shall be treated as a breach of contract and may attract legal action.
9. The Bidder shall ensure all subcontractors, agents, or representatives involved in the contract also comply with the Integrity Pact.
10. Disputes arising under the Integrity Pact shall be resolved as per the dispute resolution mechanism specified in the tender.

Price Bid Format

****PRICE BID FORMAT****

1. The Price Bid shall be submitted strictly as per the format provided in Annexure-X.
2. All prices shall be quoted in Indian Rupees (INR), exclusive of GST, with applicable tax rates clearly indicated.
3. The quoted price shall include all costs related to manufacturing, testing, packing, forwarding, and transportation up to the designated delivery point.
4. Any deviations from the specified technical requirements must be explicitly listed with corresponding price adjustments.
5. The bidder shall provide a detailed breakdown of unit rates, including raw material costs, processing charges, and overheads.
6. Prices shall remain firm and fixed for the entire duration of the contract, with no escalation permitted unless specified otherwise in the tender schedule.
7. Discounts, if any, shall be clearly indicated separately and will be considered in bid evaluation.
8. The bidder shall confirm acceptance of the payment terms as stipulated in the tender document.
9. Any additional charges not explicitly mentioned in the bid shall not be claimable at a later stage.
10. Failure to adhere to the prescribed format may result in disqualification.